

PTAB

Bar Association

ptabbar.org

PTAB Bar Association

Roundup of Roundups

2022 Edition

Introduction from the Editors



[Jonathan Bowser](#)
Haynes & Boone
Washington, DC
EIC



[Kenneth Weatherwax](#)
Lowenstein & Weatherwax
Los Angeles, CA
Ed. Appeal Deck



[Kevin K. McNish](#)
McNish PLLC
Portland, ME
Ed. District Court Desk



[Jennifer J. Huang](#)
Fish & Richardson
Minneapolis, MN
Ed. PTAB Desk



[Eugene Goryunov](#)
Haynes & Boone
Chicago, IL
EIC Roundup of Roundups

On behalf of the PTAB Bar Association, we extend a whole-hearted thank you to our volunteers who labor tirelessly to keep our membership apprised of the latest developments in our field.

Our volunteers read **thousands** of cases in 2022 to identify the most important and interesting ones. As a member of the Association, you should have received the fruits of our labors throughout the year in PTAB Roundup emails, [archived on the Association's website](#). Our summaries from 2022 are now also available in this handy, text-searchable reference—a Roundup of Roundups.

Calendar year 2022 brought about many developments to practice before the PTAB. Director Vidal was confirmed in April 2022 and issued important, clarifying guidance shortly thereafter on *Fintiv* discretionary denials, the use of applicant admitted prior art, and granted Director review in several IPR and PGR proceedings. The Federal Circuit also provided guidance for the Bar. For example, in *California Institute of Technology v. Broadcom Inc.*, the court clarified the scope of IPR estoppel and in *Nippon Shinyaku Co., Ltd. v. Sarepta Therapeutics, Inc.*, the court explained that parties may bargain away the right to file an IPR. Moreover, district courts around the country continued to provide guidance on the scope of IPR estoppel and when a stay may be appropriate in view of co-pending IPRs and reexaminations.

PTAB Roundup will continue to promptly report the latest developments in 2023.

Respectfully,

Top Contributors:

The Editors

Appellate Desk	Kenneth Weatherwax
Civil Actions / Investigations Desk	Arvind Jairam and Matthew Beck
Patent Trial and Appeal Board Desk	Kiersten Batzli, James Stein, Trent Bolar, Jenny Shmuel

Table of Contents

Introduction from the Editors.....	a
Appellate Desk	
U.S. Court of Appeals for the Federal Circuit Cases	A-1
Civil Actions / Investigations Desk	
U.S. District Court Cases	B-1
Court of Federal Claims	B-14
U.S. International Trade Commission Cases	B-15
Patent Trial and Appeal Board Desk	
Precedential Decisions	C-1
Routine Decisions	C-5

Appellate Desk

U.S. Supreme Court

U.S. Court of Appeals for the Federal Circuit

PTAB

Bar Association

ptabbar.org

U.S. Court of Appeals for the Federal Circuit Cases

CAFC: Standing to appeal IPR decision; also, claim construction and motivation to combine. The Court found that Petitioner had standing to appeal its loss in an IPR. Although Petitioner had not been sued, Patent Owner had sued one of Petitioner’s customers. And although Patent Owner settled with that customer, Patent Owner did not settle with Petitioner or offer a covenant not to sue, and Petitioner is still selling the relevant products to that customer and at least one other customer. On the merits, the Court affirmed a construction that gave the disputed term its “ordinary meaning” that was based on “interpretation of the entire claim in context, not a single element in isolation,” noting that “it is not always appropriate to break down a phrase and give it an interpretation that is merely the sum of its parts.” The Court also affirmed the Board’s determination that Petitioner failed to demonstrate a motivation to combine for some issued and substitute claims but found that substantial evidence did not support the Board’s similar determination for other substitute claims because Petitioner adequately explained the “how” and “why” a POSA would have combined the teachings as proposed. *Intel Corp. v. Qualcomm Inc.*, No. 2020-1664 (Dec. 28, 2021) (Prost, joined by Taranto and Hughes).

CAFC: Companion case on standing, and more on claim construction – including means-plus-function. In a companion case to *Intel v. Qualcomm*, above, the Court arrived at the same conclusion on standing even though Petitioner manufactured only a “secondary processor” for the claimed invention. Petitioner had standing “given the centrality of that component to the claims, the possibility of direct infringement suits based on product testing, and the possibility of indirect infringement suits based on at least inducement.” On the merits, the Court vacated and remanded because “the Board did not do enough to reach and articulate [its] understanding” of the meaning of a key limitation without any discernable plain meaning or definition in the intrinsic evidence.

As for the means-plus-function claims, the Court vacated and remanded. The Board incorrectly concluded that Petitioner’s statement that the claims were indefinite for lack of sufficient structure necessarily meant that Petitioner had not met its burden to demonstrate unpatentability over the art. The Court “h[e]ld that the Board’s conclusion was error and that a remand is required, because the Board did not decide for itself whether required structure is present in the specification or whether, even if it is not, the absence of such structure precludes resolution of Intel’s prior-art challenges.” The Court reiterated that the IPR estoppel should not apply to claims where indefiniteness renders impossible the resolution of the prior-art challenge “because the problem of indefiniteness is one of patentee’s own making, not attributable to the challenged.” *Intel Corp. v. Qualcomm Inc.*, Nos. 2020-1828, 1867 (Dec. 28, 2021) (Taranto, joined by Prost and Hughes).

CAFC: Expert lacking ordinary skill cannot testify regarding the perspective of a POSITA. The ITC ruled that the Patent Owner’s expert did not meet the undisputed definition of a POSITA. The ITC excluded the expert’s testimony regarding infringement under the doctrine of equivalents but admitted his testimony regarding literal infringement. The Federal Circuit reversed the latter ruling, holding that “[t]o offer expert testimony from the perspective of a skilled artisan in a patent case—like for claim construction, validity, or infringement—a witness must at least have ordinary skill in the art. Without that skill, the witness’ opinions are neither relevant nor reliable.” Furthermore, “[t]his is true regardless of whether the witness is being offered to testify on literal infringement, doctrine-of-equivalents infringement, or both.” The Court also held that the Commission erred by not construing “lifter member” as a means-plus-function claim term. *Kyocera Senco Indus. Tools Inc. v. ITC*, Nos. 2020-1046, 2020-2050 (Jan. 21, 2022) (Moore, joined by Dyk and Cunningham).

CAFC: Applicant-Admitted Prior Art is not a patent or printed publication. Patent Owner appealed IPR decisions after the Board found the claims unpatentable over a ground “that relied in part on applicant-admitted prior art (AAPA).” The Federal Circuit explained that AAPA is a binding admission by the patentee regarding the scope and content of the prior art. A petitioner may rely on AAPA much like it can evidence beyond prior-art documents, even when the evidence is not prior art. However, AAPA is not a patent or printed publication, and therefore cannot form the “basis” of an IPR ground. Because the Board did not decide whether the AAPA in these IPRs improperly formed the basis of Petitioner’s challenge, the Court vacated and remanded to the Board to decide that issue in the first instance. *Qualcomm Inc. v. Apple Inc.*, Nos. 2020-1558, 2020-1559 (Feb. 1, 2022) (Chen, joined by Taranto and Bryson).

CAFC: Presumption of nexus even if products have unclaimed features. The Federal Circuit affirmed PTAB findings upholding claims in IPRs, including “the Board’s presumption of a nexus” between the patent owner’s objective evidence of nonobviousness and the claimed invention, even though the products had features that were not part of the claims. A presumption of nexus “requires the patentee to demonstrate that the product is essentially the claimed invention” and “is coextensive with” the claimed features. This may be true even if the product has unclaimed features, if “their level of significance and their impact on the correspondence between the claims and the products” shows that they are “insignificant.” Moreover, the “challenger may not rebut the presumption of nexus with argument alone,” but must present “evidence showing that the proffered objective evidence was due to extraneous factors other than the claimed invention.” The panel also upheld the construction of “lidar” in the claims to mean “pulsed time-of-flight lidar” under the broadest reasonable interpretation standard, reasoning that, “right from the start,” the patent’s “written description focuses exclusively on pulsed time-of-flight lidar,” and “in light of the intrinsic evidence, a skilled artisan would interpret the term ‘lidar’ to mean pulsed time-of-flight lidar.” *Quanergy Sys., Inc. v. Velodyne Lidar USA, Inc.*, Nos. 2020-2070, -2072 (Feb. 4, 2022) (O’Malley, joined by Newman and Lourie).

CAFC: Forum selection clause precludes IPRs. Petitioner and Patent Owner signed a “Mutual Confidentiality Agreement” that included a forum selection clause placing validity challenges in the District of Delaware. Despite the agreement, Petitioner filed IPRs challenging Patent Owner’s patents. In response, Patent Owner sued Petitioner in district court, seeking a preliminary injunction to enjoin Petitioner from proceeding with the IPRs. The district court denied the

injunction, but the Federal Circuit reversed. “As a general principle, this court has recognized that parties are entitled to bargain away their rights to file IPR petitions, including through the use of forum selection clauses.” Here, the parties’ contractual promise not to file IPR petitions was “unambiguous.” The Federal Circuit also rejected arguments that it was “unfair” and “against the public interest” to enforce forum selection clauses. The Court distinguished *Kannuu Pty Ltd. v. Samsung Electronics. Co. Ltd.*, 15 F.4th 1101 (Fed. Cir. 2021), on the basis that the forum selection clause in that agreement did not encompass IPRs. *Nippon Shinyaku Co., Ltd. v. Sarepta Therapeutics, Inc.*, No. 2021-2369 (Feb. 8, 2022) (Lourie, joined by Newman and Stoll).

CAFC: Estoppel applies to simultaneously filed IPR petitions. Petitioner filed three IPR petitions on the same day against overlapping claims of the same patent, all of which were granted institution. The PTAB issued final written decisions (“FWDs”) in two of the IPRs on the same day, leaving one IPR still pending. The patent owner filed a motion to terminate the remaining IPR on the basis of estoppel under 35 U.S.C. § 315(e)(1) because the remaining IPR challenged claims that were addressed in the earlier-issued FWDs, and Petitioner “may not request or maintain” challenges against those claims. The PTAB issued a FWD in the final IPR granting the motion and terminating the final IPR as to Petitioner, while also finding the claims not unpatentable on the merits. Petitioner appealed and the Federal Circuit affirmed. Noting its recent holding in *Caltech* that estoppel extends to all grounds that reasonably could have been raised in an IPR even if they were not raised, the Court concluded that the petitioner, who knew of the grounds in the last IPR when it filed the simultaneously-filed-but-earlier-decided IPRs, was estopped from maintaining the final IPR based on the FWDs issued in the other IPRs, and it therefore was properly dismissed as a party from the IPR. And because the petitioner was no longer a party to the IPR, it could not appeal the Board’s FWD in the IPR. The Court explained that Petitioner could have asked for the IPRs to be consolidated under 35 U.S.C. § 315(d) so they would not be decided in separate FWDs that could raise estoppel against each other. *Intuitive Surgical, Inc. v. Ethicon LLC*, No. 2020-481 (Feb. 11, 2022) (O’Malley, joined by Clevenger and Stoll).

CAFC: IPR estoppel includes all grounds that reasonably could have been raised in the IPR. The Federal Circuit held that the statutory IPR estoppel, 35 U.S.C. § 315(e)(2), precludes Petitioner, upon receiving a final written decision, from later raising in district court any ground that was raised or reasonably could have been raised in its IPR petition. The Court previously held in *Shaw Industries Group, Inc. v. Automated Creel Systems, Inc.*, 817 F.3d 1293, 1300 (Fed. Cir. 2016), that the statutory estoppel applied only to grounds actually instituted. But *Shaw* arose because of the Board’s previous practice of instituting review on only some grounds, and the Supreme Court forbade that practice in *SAS Institute, Inc. v. Iancu*, 138 S. Ct. 1348 (2018). Thus, noted the Court, “[t]he panel here has the authority to overrule *Shaw* in light of *SAS*, without en banc action.” *California Inst. of Tech. v. Broadcom Ltd.*, Nos. 2020-2222, 2021-1527 (Feb. 4, 2022) and Errata (Feb. 22, 2022) (Linn, joined by Lourie and Dyk in the pertinent parts).

CAFC: District court can review IPR estoppel decisions barring reexaminations. After patent claims were upheld in IPR, the petitioner requested ex parte reexamination of the same claims on different grounds. The Director, without reaching whether the reexamination requests raised a substantial new question of patentability, vacated the proceedings based on estoppel from the IPRs under 35 U.S.C. § 315(e)(1). The Director’s decision also set forth a “Clarification of General Policy and Practice” for applying such estoppel in reexamination. The petitioner sued in district

court for judicial relief under the Administrative Procedure Act. The district court dismissed for lack of jurisdiction, but the Federal Circuit reversed, holding that although the reexamination statute expressly bars judicial review of determinations to deny reexamination for lack of substantial new questions of patentability, it does not bar review of denials on the basis of IPR estoppel, which did not exist when reexamination was created. *Alarm.com Inc. v. Hirshfeld*, No. 2021-2102 (Feb. 24, 2022) (Taranto, joined by Chen and Cunningham).

CAFC: Mandamus petition granted for improper venue. The Federal Circuit granted a petition for mandamus vacating U.S. District Judge Alan Albright’s denial of a motion to dismiss or transfer patent infringement actions filed in the Western District of Texas against automobile manufacturers. The manufacturers’ automobiles were sold and repaired under warranty at car dealerships in the district, but the court held that venue was improper under 28 U.S.C. § 1400(b) because the dealerships were not “a regular and established place of business” of the manufacturers, which would “require[] the regular physical presence of an employee or other agent of the defendant conducting the defendant’s business at the alleged ‘place of business.’” The dealerships were “independently owned and operated,” and the Court found that they were not “agents of” the manufacturers. The “agency relationship requires the principal have the right throughout the duration of the relationship to control the agent’s acts,” and the mere fact that the dealerships were franchisees of the car manufacturers engaged in the business of selling their cars and providing warranty services upon those cars was not enough to give the manufacturers a sufficient right of control over the dealerships. Although the manufacturers exerted “various constraints” on the dealerships “related to sales,” they “retain no authority over the manner in—or price for—which the car will be sold” and “there [we]re no ‘step-by-step’ instructions from [the manufacturers] that [the] dealerships must follow when selling a car to a consumer.” Therefore, venue was improper. *In re Volkswagen Group of Am., Inc.*, Nos. 2022-108, 2022-109 (Mar. 9, 2022) (per curiam) (Dyk, Reyna, Chen).

CAFC: Obviousness not defeated when limitation disclosed by combination of references. The claimed invention was an “intelligent ballistic parachute system” for slowing the fall of a crashing aircraft, which would automatically determine whether to deploy the parachute and, before doing so, perform flight maneuvers to place the aircraft in a safer attitude. The prior art taught ballistic parachutes, and autopilots that performed flight maneuvers, but no autopilots that performed such flight maneuvers upon receipt of a parachute deployment request. The Federal Circuit affirmed the PTAB’s determination that the combination nevertheless rendered the claims obvious, finding substantial evidence that the prior art taught that such maneuvers were preferable before deploying emergency parachutes, and that an ordinarily skilled artisan would have had sufficient “knowledge, creativity, and common sense” to be motivated, in view of the combined references, to program their autopilot to automatically perform such maneuvers upon receiving a request to deploy the parachute. “That the proposed combination of [the two references]—rather than one of the individual references—discloses the disputed claim limitations does not defeat the Board’s conclusion of obviousness” (emphasis in original). *Fleming v. Cirrus Corp.*, No. 2021-1561 (Mar. 10, 2022) (Stoll, joined by Lourie and Hughes).

CAFC: Federal Circuit affirms Precedential Opinion Panel decision on technicality. A Board panel found challenged claims in an IPR anticipated. The patent owner filed a motion to amend with substitute claims. Instead of agreeing with the obviousness grounds in the petitioner’s

opposition to the motion to amend, the Board panel sua sponte found that the substitute claims were anticipated by the same reference used to challenge the original claims as anticipated. On rehearing, the PTAB's Precedential Opinion Panel ("POP") reversed as to the substitute claims, holding that proposed substitute claims should be found unpatentable on a sua sponte ground only rarely, and that this was not such a rare case, because (as relevant here) the record did not "readily and persuasively establish[] that [the] substitute claims [we]re unpatentable for the same reasons that [the] corresponding original claims [we]re unpatentable." The Federal Circuit affirmed. The Court agreed that the Board does not always "ha[ve] an obligation to sua sponte identify patentability issues for a proposed substitute claim based on the prior art of record," but was unconvinced it was only rarely appropriate to do so. However, because the petitioner did not challenge the POP's decision as an abuse of discretion, the Court explained that it "must therefore affirm." In a concurrence, Judge Prost wrote that the substitute claims were "likely" unpatentable on the merits. *Hunting Titan, Inc. v. DynaEnergetics Europe GmbH*, Nos. 2020-2163, 2020-2191 (Mar. 24, 2022) (Hughes, joined by Prost and Reyna).

CAFC: "General skepticism about...field" did not defeat motivation to combine. The Board found challenged claims to robotic surgery systems not unpatentable in IPR. The obviousness references disclosed all the claim limitations, but the Board found insufficient evidence that an ordinary artisan would have been motivated to combine the references. The Board found that "skepticism at the time of the invention for using robotic systems during surgery in the first place" weighed against a motivation to combine the first reference's system with the other reference's teachings. A divided Federal Circuit panel vacated the nonobviousness determination. The majority held that although "evidence of industry skepticism may play a role in an obviousness inquiry," it is "as a secondary consideration," and "must be specific to the invention, not generic to the field." Patent Owner's "vague expert testimony that 'there was great skepticism for performing telesurgery'" was insufficient because it was not "specific evidence of industry skepticism related to a specific combination of references." The majority remanded for the Board to weigh other relevant evidence in the first instance. Judge Reyna dissented, writing that there was no "rigid rule" that such "general skepticism" evidence might not support a finding of no motivation to combine, and that the Board supported its findings "on multiple grounds." *Auris Health, Inc. v. Intuitive Surgical Operations, Inc.*, No. 2021-1732 (Apr. 29, 2022) (Prost, joined by Dyk; Reyna dissenting).

CAFC: Decision to vacate institution partly "as a...sanction" was unreviewable. In its third opinion involving a single IPR, the Federal Circuit held it lacked jurisdiction to review the assigned PTAB panel's decision to vacate its initial decision to grant institution of review. The assigned PTAB panel had at first granted institution, finding that the 35 U.S.C. § 315(b) time-bar did not apply because Patent Owner's served district court infringement complaint against Petitioner had been dismissed without prejudice. After the Board found the claims unpatentable at trial, the Federal Circuit reversed on the basis that the § 315(b) time-bar applied. The Supreme Court then vacated the Federal Circuit's decision, ruling that the assigned PTAB panel's determination of no time bar was not appealable. On remand, the Federal Circuit affirmed the unpatentability determination on the merits and remanded for consideration of Patent Owner's pending motion to terminate the proceeding as a sanction for Petitioner's failure to timely update its real party-in-interest information. On remand from the Federal Circuit, the assigned PTAB panel decided that its own unreviewable determination that institution was not time-barred had been wrong, and, based on "a holistic evaluation of multiple considerations," including the fact that its institution

decision had been contrary to the Office’s current interpretation of the law, vacated the institution decision. The PTAB panel held that vacatur was appropriate and would also “operat[e] as a sufficient sanction” to resolve the sanctions motion. Petitioner appealed. In a divided decision, the Federal Circuit majority held “that the Board’s termination decision was based in part on its evaluation of the time bar and was not purely a sanctions decision,” so the Court “lack[ed] jurisdiction to hear” the appeal. Judge Newman dissented, writing that the decision was a sanctions order and therefore appealable. *Atlanta Gas Light Co. v. Bennett Regulatory Guards, Inc.*, No. 2021-1759 (May 13, 2022) (Stoll, joined by Lourie; Newman dissenting).

CAFC: Determination that printed publication was not shown to be available as prior art failed to resolve fact questions. The PTAB determined that a printed publication forming the basis for instituted IPR grounds was not shown to have been available as prior art against the challenged claims. The reference was authored by three people, two of whom were the patents’ two named inventors. These inventors submitted inventor declarations during prosecution testifying that the publication’s third author was not a co-inventor of the claimed subject matter and based on this testimony the examiner withdrew a rejection based on the publication. Subsequently, in the IPRs, Petitioner argued that the publication was prior art, alleging that the third author was a co-inventor of the subject matter such that the publication described work “by others” under pre-AIA 35 U.S.C. § 102(a). The PTAB instituted trial but ruled that Petitioner had not shown that the third author was a co-inventor of the claimed subject matter. On appeal, the Federal Circuit held that the PTAB was correct that Petitioner had the burden of persuasion on whether the third author “made an inventive contribution to the portions of the reference relied on and relevant to establishing obviousness.” But the Court rejected the PTAB’s determination that the third author’s testimony was uncorroborated as a matter of law, holding that his “testimony as to his technical contributions was sufficiently corroborated by his being named as a co-author on the [asserted] reference, his role within the . . . project, [a named inventor]’s acknowledgement of [his] technical contributions to the . . . project, and [his] being named [as an inventor] on [a related] patent.” The Court remanded for determination of whether the author’s “testimony should ultimately be credited over [the patent’s named inventors’] conflicting testimony,” holding that the PTAB’s finding that “all the witnesses . . . were credible” was “not a tenable position.” *Google LLC v. IPA Techs. Inc.*, Nos. 2021-1179, 2021-1180, 2021-1185 (May 19, 2022) (Dyk, joined by Schall and Taranto).

CAFC: Inferior Officer temporarily performing USPTO Director’s functions and duties could constitutionally review PTAB decision under U.S. v. Arthrex. After the Supreme Court held that the USPTO Director, as a Presidentially-appointed and Senate-confirmed (“PAS”) officer, is deemed to have authority to review PTAB decisions in AIA proceedings in order for those decisions to be constitutionally issued, the patent owner in that case sought Director review of the PTAB’s determination of unpatentability. The Director position was vacant when Director review was requested, so the Commissioner of Patents, a non-PAS officer who was temporarily performing the functions and duties of the Director, reviewed the request. The Commissioner denied the request. The Federal Circuit held that this decision was constitutional because the “Appointments Clause allows an inferior officer to temporarily wield the powers of an absent PAS officer,” and “the Commissioner was merely performing the functions and duties of the Director in the limited period between the former Director’s departure and the current Director’s arrival.” The Court further held that the Federal Vacancies Reform Act (FVRA) did not bar the Commissioner’s decision because the FVRA applies only to “non-delegable duties” and “deciding

rehearing requests is a delegable duty” of the Director. While “this reading . . . renders the FVRA’s scope ‘vanishingly small,’ . . . [t]hat does not, however, justify departing from the plain language of the statute.” *Arthrex, Inc. v. Smith & Nephew, Inc.*, No. 2018-2140 (May 27, 2022) (Moore, joined by Reyna and Chen).

CAFC: Substantial evidence supported IPR determination that substitute claim in motion to amend was not indefinite. The Board granted a motion to amend directed to microphone arrangements that added the language “arranged in a self-similar configuration,” rejecting the argument that this new limitation rendered the new claim unpatentable for indefiniteness. The Federal Circuit affirmed, crediting the Board’s factual finding “that self-similar has a well-known meaning and confirms the scope of the invention in the written description.” Even if self-similar was “susceptible to more than one meaning,” that “d[id] not render it indefinite,” and “[b]ased on the intrinsic record alone,” the discussion of patterns in “the written description provide[d], with reasonable certainty, the scope of the term self-similar.” The Court also found that the specification provided examples of “self-similar configurations.” *ClearOne, Inc. v. Shure Acquisition Holdings, Inc.*, No. 2021-1517 (June 1, 2022) (Moore, joined by Newman and Hughes).

CAFC: PTAB permissibly found statement in prior art to be “obvious error” rather than “actual teaching.” Petitioner argued that a limitation of a claim was met, relying only on a table in a prior art reference. It was, however, “undisputed that the [data] in [the reference’s] [t]able . . . were erroneous,” as shown by the testimony of Patent Owner’s expert. The panel majority held that under *In re Yale*, 434 F.2d 666 (C.C.P.A. 1970), “where a prior art reference includes an obvious error of a typographical or similar nature that would be apparent to one of ordinary skill in the art who would mentally disregard the errant information as a misprint or mentally substitute it for the correct information, the errant information cannot be said to disclose subject matter.” Under this “standard for reviewing errors in disclosures,” substantial evidence supported the Board’s finding that this data in the reference would have been disregarded as erroneous. It took over ten hours of expert analysis to prove this error, but “the length of time and the ‘particular manner’ in which the error was actually discovered ‘does not diminish that there is an obvious error.’” Judge Newman dissented, writing that the error was not obvious enough to be deemed a typographical or similar error. *LG Elecs. Inc. v. ImmerVision, Inc.*, Nos. 2021-2037, 2021-2038 (July 11, 2022) (Stoll, joined by Cunningham; Newman dissenting-in-part).

CAFC: Deliberate narrowing of claim to remove § 101 rejection was not inadvertent mistake correctable by reissue even if patent owner now believed it was unneeded. To overcome a 35 U.S.C. § 101 patent-ineligibility rejection in original prosecution, the patent owner amended the pending claims, and successfully argued “that the new ‘processor’ limitations overcame the § 101 rejection by tying ‘the methods recited . . . to a particular machine (i.e., the processor), which ‘imposed meaningful limits in the [claims’] scope.’” The patent owner filed a continuation application, obtaining a second patent with more claims having “processor limitations like those added to the parent application.” The patent owner then filed a reissue application proposing to broaden the continuation patent by removing the “processor” limitations, declaring that it now believed them to be an error because they were “unnecessary to the patentability and operability of the claimed inventions.” The broadened claims were rejected for attempting to regain through reissue subject matter that was surrendered during prosecution. The Federal Circuit affirmed. The Court found that reissue can only be used to correct “inadvertence or mistake,” and that here the

patent owner had “deliberately amended the claim scope” to add these limitations to remove the rejection and “cannot now use the reissue application as a Trojan horse to recapture that which he deliberately gave up.” The Court held that this “recapture rule” was not limited to rejections to avoid prior art, but also applied to amendments addressing ineligibility, despite arguably contrary language in the Manual of Patent Examining Procedure, which “does not have the force of law.” The fact that “§ 101 case law . . . ha[d] changed dramatically over the last 15 years . . . d[id] not justify giving disparate treatment to various statutory provisions under the recapture rule.” In re McDonald, No. 2021-1967 (Aug. 10, 2022) (Cunningham, joined by Newman and Stoll).

CAFC: Board’s findings that theory was both untimely and unpersuasive were each independently sufficient to affirm Board on appeal. The Federal Circuit affirmed the Board’s determination in IPR that claims to a computer storage error reduction invention were not anticipated, rejecting both of the petitioner’s theories on appeal. The petitioner’s first theory on appeal was a merits-based argument that the Board had concluded “was both untimely (because it was raised for the first time at the Board hearing) and unpersuasive” on the merits. The petitioner appealed the merits ruling but not the untimeliness ruling, “argu[ing] that it was not necessary to challenge the Board’s untimeliness determination because the Board nevertheless reached the merits.” The Federal Circuit disagreed, holding that the petitioner “forfeited any challenge to the untimeliness holding by failing to challenge it in its opening brief on appeal, and the Board’s timeliness holding constitutes an independent ground for its decision” rendering it unnecessary to address the merits. The petitioner’s second theory on appeal was that the Board was wrong to find that the allegedly anticipatory reference was not invented “by another” person than had invented the challenged patent, noting that the reference named a completely different person as inventor. The Federal Circuit rejected this theory as well, agreeing with the Board that “the relevant disclosure” in the reference on which the petitioner’s anticipation theory relied expressly reproduced an earlier report that had been written by the named inventors of the challenged patent, so the inventor of the patent and the relevant portions of the reference were the same. LSI Corp. v. Regents of the Univ. of Minn., No. 2021-2057 (Aug. 11, 2022) (Dyk, joined by Reyna and Hughes).

CAFC: “Cast in one piece” was product-by-process limitation having no patentable weight. The Federal Circuit affirmed the PTAB’s IPR anticipation and obviousness determinations, largely on the basis that the Board correctly construed “cast in one piece” as a product-by-process limitation, because this limitation was not shown to impart any difference in structure from a product that was not cast in one piece and accordingly added no patentable weight to the claims capable of distinguishing it from prior art. Kamstrup A/S v. Axioma Metering UAB, No. 2021-1923 (Aug. 12, 2022) (Reyna, joined by Mayer and Cunningham).

CAFC: Accused infringer who lost IPR was statutorily estopped from raising ground that had been denied institution pre-SAS. The Board partially denied institution of an IPR as to one ground, which was the sole ground against one of the challenged claims. The Board did not address unpatentability of that claim in its final written decision. During the appeal from the IPR trial, the Supreme Court overruled the Board’s former practice of partial institutions in SAS Institute, Inc. v. Iancu, 138 S. Ct. 1348 (2018). The petitioner, however, did not seek remand under SAS for the Board to consider its challenge to the non-instituted claim. In the parties’ parallel infringement action, the district court held that the petitioner was not estopped under 35 U.S.C. § 315(e)(2) from asserting the non-instituted against that claim. The Federal Circuit reversed. Noting that this was

“a rather unusual set of facts,” the Federal Circuit held that because the petitioner included this claim and ground in its petition, estoppel applied even though the Board did not address this claim or ground in its final written decision. Although institution was denied on this claim and ground under the Board’s prior partial institution practice, “it is the petition, not the institution decision, that defines the scope of the IPR.” The petitioner “was not helpless to remedy the Board’s institution error,” yet “never sought a SAS remand directing the Board to address its non-instituted claims and grounds.” The Federal Circuit also noted that § 315(e)(2) estoppel does not require the issue to have been “actually litigated,” because “the IPR statute also estops grounds that ‘reasonably could have [been] raised.’” *Click-to-Call Techs. LP v. Ingenio, Inc.*, No. 2022-1016 (Aug. 17, 2022) (Stoll, joined by Schall and Cunningham).

CAFC: Director’s discretionary power to review denials of institution decided on her behalf was sufficient to satisfy Constitution’s Appointments Clause. An IPR and PGR petitioner filed petitions for a writ of mandamus to the Federal Circuit arguing that the USPTO Director violated the Appointments Clause of the Constitution by refusing to consider its requests for “Director Rehearing” of the Board’s decisions denying institution on behalf of the Director. Under the Supreme Court’s decision in *United States v. Arthrex, Inc.*, 141 S. Ct. 1970 (2021), the Patent Act must permit the Director to review “final decisions rendered by APJs,” including final written decisions in IPRs, because the statute would otherwise unconstitutionally “insulate the decisions of APJs from her direction and supervision.” Here, the petitioner requested Director review of the Board’s decisions denying institution of the IPR and PGR petitions, but the USPTO responded that the petitioner’s requests “w[ould] not be considered.” The agency explained that “at this time, the USPTO does not accept requests for Director review of decisions on institution,” although the USPTO later promulgated additional guidance stating that “the Director has always retained and continues to retain the authority to review such decisions sua sponte” at her “discretion.” The Federal Circuit concluded that mandamus review was available, but denied mandamus relief, “read[ing] the Supreme Court’s decision in *Arthrex* as confirming that the statutory and regulatory provisions concerning institution do not violate the Appointments Clause,” and that it made “no difference that the Director delegated institution authority to the PTAB without express retention of any avenue for Director intervention.” “The institution decision is committed to the Director’s unreviewable decision,” and the Director has delegated this decision to the Board, but “[u]nder *Arthrex*, ‘what matters is that the Director have the discretion to review final decisions,’ which the Director has in this case.” The Court further reasoned that “there is no structural impediment to the Director’s authority to review institution decisions either by statute or by regulation,” and that “[a]s a matter of practice, the Director expressly retained review authority” and “ha[d] since exercised that authority” in other cases. In *re Palo Alto Networks*, No. 2022-145 (Aug. 17, 2022) (Dyk, joined by Chen; Reyna concurring in result).

CAFC: Process for determining eligibility for benefits was ineligible for patenting. An applicant sought to patent an automated process “for determining Social Security Disability Insurance benefits through a computer network.” The claims were rejected under 35 U.S.C. § 101. The Board found that the rejected claims were “directed to the patent-ineligible abstract idea of ‘a search algorithm for identifying people who may be eligible for SSDI benefits they are not receiving,’” and that the claims’ essential steps were “performed in the human mind and . . . thus ‘an abstract mental process.’” The Federal Circuit affirmed, reasoning that the applicant’s “claims must fail Alice/Mayo step one as they are directed to collection of information, comprehending

the meaning of that collected information, and indication of the results, all on a generic computer network operating in its normal, expected manner,” and “could be performed by a person.” The Federal Circuit explained that even if the Alice/Mayo eligibility standard is insolubly unclear, as argued by the applicant, the Federal Circuit and the Board are bound to apply it. The applicant argued “that whether a claimed process is well-understood, routine, and conventional is necessarily a factual inquiry requiring the finder of fact to consult all evidence in the record,” and that the examiner and the Board improperly adjudged eligibility “in an evidentiary vacuum” without considering fifty-five documents submitted to the examiner, but the applicant “d[id] not explain on appeal what specifically these fifth-five documents show, nor did he include them in the joint appendix,” and therefore forfeited any argument on appeal based on them. *In re Killian*, No. 2021-2113 (Aug. 23, 2022) (Chen, joined by Taranto and Clevenger).

CAFC: Canceling claim deprived patentee of standing to appeal as to patentability. Shortly before an IPR ended, Patent Owner finally canceled one of the challenged claims in a co-pending reexamination. The Board proceeded to address that claim in the IPR final written decision and determined that it was unpatentable. Patent Owner appealed. The Federal Circuit held that the final cancelation of the claim in the reexamination prior to the Board’s final written decision deprived Patent Owner of standing to appeal the unpatentability determination, despite Patent Owner’s argument that the unpatentability determination might have collateral estoppel consequences against Patent Owner in other proceedings. The Federal Circuit found that the Board had not erred in addressing the patentability of the claim in its final written decision. The Court proceeded to affirm the Board’s unpatentability determinations as to the remaining claims, and in doing so upheld the Board’s determination that the level of ordinary skill in the art at issue required formal computer programming experience. Even though “little supporting evidence from either party” was presented on this question, the Board reasonably derived its answer from the whole of the record, particularly “in view of the limited and conclusory treatment the parties gave this issue.” *Best Med. Int’l, Inc. v. Elekta Inc.*, Nos. 2021-2099, 2021-2100 (Aug. 26, 2022, revised Aug. 29, 2022) (Stoll, joined by Hughes and Linn).

CAFC: Teaching of nearly 1,000 possible compounds was not “limited class” whose members could all be “at once envisaged” for purposes of anticipation. An IPR challenged a patent to a type II diabetes treatment drug comprising a particular salt of a particular stoichiometry. The reference did not expressly disclose the claimed substance, but the challenger argued that there was inherent disclosure, under the legal standard that an invention is anticipated when “a skilled artisan may at once envisage each member of a limited class” of possibilities from the prior art reference, one of which is the claimed invention. The challenger noted that the reference disclosed that 33 compounds could be reacted with acids, including eight “particularly preferred” acids, to make “pharmaceutically acceptable salts” for treating type II diabetes. One of the 33 compounds was the base of the claimed salt, and one of the eight preferred acids was the acid that could be reacted with that base to form the invention. Patent Owner argued that this anticipation theory, in essence, “use[d] hindsight to single out one compound from the large class.” The reference singled out neither this particular base in the list of 33 compounds, nor this particular acid in the list of eight preferred acids, and taking into account the “various stoichiometric possibilities,” the reference taught a class of 957 salts, which would not always form from the disclosed reaction “even under experimental conditions,” because “salt formation is an unpredictable art that requires a ‘trial and error’ process.” The Board found no anticipation, and the Federal Circuit affirmed.

Explaining that “[t]he key term here is ‘limited,’” the Federal Circuit found that substantial evidence supported the Board’s conclusion that this disclosure of a class of 957 salts was “insufficient to meet the ‘at once envisage’ standard” for inherent disclosure of “a limited class” for purposes of anticipation. *Mylan Pharms. Inc. v. Merck Sharp & Dohme Corp.*, No. 2021-2121 (Sep. 29, 2022) (Lourie, joined by Reyna and Stoll).

5th Circuit: Mandamus is extraordinary remedy reserved for extraordinary causes. The Fifth Circuit denied a petition for mandamus seeking an order directing the Northern District of Texas to transfer venue to the more convenient forum of the W.D. Texas. (Note: this is not a patent case, but many Federal Circuit mandamus cases involve the application of Fifth Circuit mandamus law in the context of motions for transfer.) Under Fifth Circuit mandamus law, review “in the context of a motion to transfer” is “only for clear abuses of discretion that produce patently erroneous results,” and the Court “reiterate[d] that district courts have broad discretion in deciding motions to transfer; they need only grant such a motion where the evidence demonstrates that the destination venue is ‘clearly more convenient’ than the chosen venue.” As to timing factors, “parties seeking a change in venue should act with reasonable promptness,” and “a party’s delay” may matter on mandamus. Here, “[t]he district court was within its discretion” to cite “the fact that Petitioners waited to seek transfer until after the district court denied their motion to dismiss and motion for reconsideration [of that denial] before moving for transfer.” As for the “private interest factors,” “location of evidence bears much more strongly on the transfer analysis when . . . the evidence is physical in nature” rather than “electronic,” and when witnesses reside outside the original venue there is “less weight” favoring mandamus “when it has not been alleged or shown that any witness would be unwilling to testify.” Here, it was not an abuse of discretion to have considered “the cost of attendance for willing witnesses” to be affected by the fact that “hotels and restaurants” are “cheaper” in the original venue. As to “the public interest factors,” the district court did not abuse its discretion in considering the venue’s relative “docket efficiency” and its own “familiarity” with the issues. *In re Planned Parenthood Fed’n of Am.*, No. 22-51008 (Oct. 31, 2022) (Elrod, joined by Graves and Ho).

CAFC: Not all IPR claim amendments must respond to an unpatentability ground. In IPR proceedings, the Board’s institution decisions included a preliminary finding that some of the challenged claims were not shown to be unpatentable because a motivation to combine was not shown with respect to one limitation. Patent Owner filed motions to amend to replace other challenged claims, if they were found unpatentable, with substitute claims adding that limitation. The proposed substitute claims also included “other non-substantive amendments.” Petitioner argued that 37 C.F.R. § 42.121 requires every amendment in a motion to amend to be directly responsive to a ground of unpatentability. The Board disagreed and granted the motion to amend. The Federal Circuit affirmed, concluding that under the IPR statute and this rule, “[b]ecause each proposed substitute claim included at least one responsive narrowing limitation, [Patent Owner] was free to include other amendments” narrowing the claim. *American Nat’l Mfg. Inc. v. Sleep Number Corp.*, Nos. 2021-1321 et al. (Nov. 14, 2022) (Stoll, joined by Schall and Cunningham).

CAFC: PTAB not required to accept disclaimer-by-argument made during an IPR. In an instituted IPR, Patent Owner stated that its challenged claims did not cover a particular configuration and argued the Board should treat its statement as a disclaimer of claim scope for purposes of determining patentability. The Board declined to do so, and the Federal Circuit affirmed. The

Court held that “the Board is not required to accept a patent owner’s argument as disclaimer when deciding the merits of those arguments.” The Court wrote that a contrary result “would substantially undermine the IPR process,” reasoning that “[i]f patentees could shapeshift their claims through argument in an IPR, they would frustrate the Patent Office’s power to ‘revisit’ the claims it granted and require focus on claims the patentee now wishes it had secured.” Further, the Court reasoned that allowing a patent owner to limit its claims through disclaimer would render the motion to amend process “unnecessary because the same outcome could be achieved by disclaimer.” The Court concluded that “a disclaimer in an IPR proceeding is binding in later proceedings, whether before the PTO or in court,” but “is not binding on the PTO in the very IPR proceeding in which it is made, just as a disclaimer in a district court proceeding would not bind the district court in that proceeding.” *CUPP Computing AS v. Trend Micro Inc.*, Nos. 2020-2262 et al. (Nov. 16, 2022) (Dyk, joined by Taranto and Stark).

CAFC: Mandamus relief not warranted to terminate ex parte reexamination. Petitioner challenged Patent Owner’s claim as being obvious over two references. The Board denied institution, finding that Petitioner’s two-reference ground did not teach a claim limitation. Petitioner then filed a request for ex parte reexamination that added a third reference to the ground of challenge. Patent Owner petitioned the Office to reject the reexamination request under 35 U.S.C. § 325(d). The Office granted reexamination, finding that the three-reference combination raised a substantial new question of patentability that was different than the IPR grounds. Patent Owner filed a mandamus petition seeking the Federal Circuit to order termination of the reexamination under *In re Vivint*. The Federal Circuit denied mandamus because Patent Owner did not meet the “demanding standard” of showing “a clear and indisputable right to mandamus relief.” The Court found that “[m]andamus relief is unavailable because a post-final decision appeal [as in *Vivint*] is an adequate remedy by which [Patent Owner] may seek to obtain relief based on its § 325(d) challenge.” The Court also noted that Patent Owner had not shown that the addition of the third reference was “so clearly contrary to the law or the record as to warrant mandamus.” *In re Sound View Innovations, LLC*, No. 2022-161 (Nov. 22, 2022) (Stark, joined by Lourie and Taranto).

CAFC: IPR created issue preclusion in another IPR involving a related patent. The Federal Circuit partially reversed a PTAB decision that challenged patent claims to a communication system were not proven to have been obvious. During the pendency of this IPR (“the ’813 IPR”) and its appeal, another IPR (“the ’483 IPR”) became final which involved the same parties and prior art, a related patent with the same specification, and some of the same claim limitations. The PTAB’s final determination in the ’483 IPR was that a prior art combination taught or suggested a “request for processing service” limitation. In the ’813 IPR, Petitioner had not argued, and the PTAB did not find, that this limitation was taught or suggested by that prior art. Nevertheless, the Federal Circuit held that the final decision in the ’483 IPR raised collateral estoppel (otherwise known as issue preclusion) on this issue in the ’813 IPR, so the limitation must be deemed in the ’813 IPR to be taught or suggested by these references. The issue was identical in the two IPRs, and the issue was fully, fairly, and actually litigated in the ’483 IPR and essential to that case’s resolution. Finally, the fact that Petitioner did not raise issue preclusion from the ’483 IPR in the ’813 IPR did not waive the argument, because the PTAB did not issue its decision in the ’483 IPR until after the petition in the ’813 IPR was filed. As such, Petitioner “did not forfeit its collateral estoppel argument by raising it for the first time on appeal” in the ’813 IPR. *Google LLC v. Hammond Dev. Int’l, Inc.*, No. 2021-2218 (Dec. 8, 2022) (Moore, joined by Chen and Stoll).

Civil Actions / Investigations Desk

U.S. District Court Cases

U.S. International Trade Commission Cases

PTAB
Bar Association

ptabbar.org

U.S. District Court Cases

District Court: No stay of claim construction pending institution decision in second-filed IPR. Defendant voluntarily dismissed its first IPR petition and then moved to extend the deadlines in the district court litigation by seven months. A few weeks later, Defendant filed an alternative motion to stay claim construction proceedings until after the PTAB resolved Defendant's "forthcoming petition for inter partes review." Meanwhile, the Court mediated the scheduling dispute and entered a new scheduling order setting an agreed deadline for claim construction briefing. Defendant then moved to stay claim construction pending the Board's institution decision. The Court denied Defendant's motion for lack of good cause, as indicated by "[Defendant]'s intentional withdrawal of its first PTAB petition, its decision to use the civil discovery process, the close temporal proximity between its second PTAB petition and its July motions to postpone or stay these proceedings, coupled with the timing of its motion to stay claim construction briefing now despite proposing something different mere weeks ago." *Ivanti, Inc. v. StayLinked Corp.*, No. 2:18-cv-00075, ECF No. 184 (D. Utah Dec. 10, 2021) (Bennett).

District Court: Length of stay no basis to lift stay while reexamination remains pending. In 2016, the Court stayed the case pending the outcome of IPRs filed by Defendant. In 2018, the Court lifted the stay following resolution of the IPRs. In 2019, the Court again stayed the case after Defendant filed reexaminations in response to Plaintiff's assertion of new patent claims. Plaintiff moved to lift the stay, arguing that the current 31-month length of the stay weighed in favor of restarting the litigation. Plaintiff argued that it would be prejudiced by continuing the stay because appeals may extend the stay for more than two years, and that delay may impact witness availability and memory. The Court disagreed that there was undue prejudice, finding that the length of the delay was based on Plaintiff's challenge to unpatentability determinations in the reexamination. Further, the Court found that potential simplification weighed in favor of maintaining the stay because asserted claims were rejected in reexamination. *Corel Software, LLC v. Microsoft Corp.*, No. 2:15-cv-00528, ECF No. 290 (D. Utah Dec. 21, 2021) (Parrish).

District Court: After stay pending IPR, another stay pending ex parte reexams. Despite a previous 16-month stay pending IPR, the Court stayed the case pending newly filed ex parte reexaminations of three of four asserted patents because (1) the reexaminations had the potential to simplify issues in the case, (2) incomplete discovery and no set trial date favored the stay, and (3) the stay would not prejudice plaintiff beyond mere delay. *WAG Acquisition, LLC v. Flying Crocodile Inc.*, No. 2:19-cv-01278, ECF No. 285 (W.D. Wash. Dec. 28, 2021) (Rothstein).

District Court: No stay for third party's reexamination. Nine months after Plaintiff sued Defendant for patent infringement, a third party requested ex parte reexamination. Defendant sought a stay pending the reexamination after the Office ordered reexamination and rejected all claims. The Court denied the stay, finding that Plaintiff would be prejudiced. Further, the delay in filing the reexamination coupled with the risk of un-ending reexaminations weighed against a stay. The Court indicated that it did not adopt a “bright-line rule that a stay will be granted because a single examiner at the PTO has initially rejected the claims at issue,” especially when the party requesting reexamination “drug its feet” in doing so. *Longhorn HD LLC v. Netscout Systems, Inc.*, No. 2:20-cv-00349, ECF No. 72 (E.D. Tex. Jan. 6, 2022) (Gilstrap).

District Court: Two pre-institution IPR petitions, one ex parte reexamination, no stay. Defendant moved to stay the litigation after various parties, including Defendant, filed two IPR petitions against the Plaintiff's patent. Those petitions had not yet received institution decisions. The Office had also granted a request for ex parte reexamination for the same patent. The Court denied the stay, finding that neither the pre-institution IPR petitions nor the pending ex parte reexamination were likely to simplify the issues. *Ancora Techs., Inc. v. Vizio, Inc.*, No. 2:21-cv-08534, ECF No. 71 (C.D. Cal. Jan. 14, 2022) (Scarsi).

District Court: Collateral estoppel precludes non-obviousness argument and testimony regarding features in a canceled claim. After Defendant invalidated all of the asserted claims in an IPR, Plaintiff amended its infringement contentions to add dependent claim 13, which was not previously asserted and was not challenged in the IPR. Defendant moved to preclude Plaintiff from arguing non-obviousness of a feature found in previously asserted (and canceled by the PTAB) claim 11. The Court granted Defendant's motion, finding that collateral estoppel barred relitigating the non-obviousness based on the unpatentable claim's features. *Trustees Univ. Penn. v. Eli Lilly & Co.*, No. 2:15-cv-06133, ECF No. 343 (E.D. Penn. Jan. 14, 2022) (Diamond).

District Court: Case stayed after CAFC vacates and remands IPRs. The Court had previously stayed the litigation pending instituted IPRs of all asserted patents. After the PTAB issued final written decisions upholding the patentability of the claims of all but one of the patents, the Court lifted the stay despite Defendant/Petitioner's appeals of the IPR decisions. The parties completed discovery, Daubert briefing, and summary judgment briefing in the litigation. Meanwhile, the Federal Circuit vacated-in-part and remanded the Board's IPR decisions. The Court granted Defendant's motion to stay, noting that the Board may simplify the case even though the Federal Circuit affirmed the unpatentability of some of the asserted claims. *Medline Industries, LP v. C.R. Bard, Inc.*, No. 1:17-cv-07216, ECF No. 367 (N.D. Ill. Jan. 31, 2022) (Ellis).

District Court: No stay despite instituted IPRs. The Board instituted both of Defendant's IPR petitions challenging the asserted patents. The Board also instituted two more IPRs filed by third parties against the same patents. The Court, however, denied Defendant's motion to stay pending IPR. The Court found that the likelihood of simplification was speculative, noting the PTAB's statements in the decisions to institute that the PTAB was “not prepared on th[e] preliminary record to characterize the merits of [Defendant's] challenge as especially strong.” The Court also found that the stage of a case weighed against a stay because the Court had issued claim construction order “nearly four months ago” and the parties had begun discovery. Also, the prejudice to Plaintiff weighed against a stay because the patents would expire shortly after the Board issues its final

written decisions. *Ravgen, Inc. v. Quest Diagnostics, Inc.*, No. 2:21-cv-09011, ECF No. 148 (C.D. Cal. Feb. 2, 2022) (Klausner).

District Court: Case stayed despite IPRs challenging only some of the asserted patents. Plaintiff asserted seven patents. Defendant filed IPR petitions against two of the patents. A third party filed an IPR petition against a third patent. The PTAB instituted IPR for all three challenged patents. Defendant then moved to stay the litigation. The Court granted the motion and stayed the case, finding that the instituted IPRs could significantly reduce the number of claims that proceed to trial. The case was also in its early stages, and Plaintiff would not have suffered undue prejudice because it did not compete with Defendant. *Bell Semiconductor, LLC v. NXP Semiconductors, N.V.*, No. 1:20-cv-000611, ECF No. 114 (W.D. Tex. Feb. 7, 2022) (Yeakel).

District Court: Plaintiff allowed to assert new claims after PTAB proceedings. Plaintiff's complaint alleged that Defendants infringed six claims of the asserted patent. Plaintiff's infringement contentions, though, listed only four of those claims. Defendant's IPR petition challenged the six claims listed in the complaint. The Court stayed the case after the PTAB instituted the IPR. The PTAB held the four claims listed in Plaintiff's infringement contentions unpatentable, but upheld the two claims listed in the complaint but absent from Plaintiff's infringement contentions. After the Federal Circuit affirmed the PTAB's decision in its entirety, Plaintiff requested that the district court reopen the case to permit Plaintiff to assert the two claims listed in the complaint but absent from Plaintiff's infringement contentions, based on technical analysis obtained by Plaintiff indicating that Defendant infringed the two claims listed in the complaint but absent from Plaintiff's infringement contentions. The Court granted Plaintiff's motion, finding that it demonstrated good cause and reasonable diligence to assert the previously unasserted claims. The Court also recognized that Defendant had not suffered prejudice because the PTAB fully reviewed the two previously unasserted claims. *Cocona, Inc. v. VF Outdoor, LLC*, No. 1:16-cv-02703, ECF No. 92 (D. Colo. Feb. 15, 2022) (Arguello).

District Court: PTAB's analysis of prior art and claim term suggests that claim term is not indefinite. During claim construction in District Court, the parties disputed whether a claim term was indefinite. The Court found that the term was not indefinite and construed the limitation, reasoning that the PTAB's ability to analyze the disputed term in relation to prior art demonstrated it was not indefinite, and applicant's statements made during prosecution provided clarity to the meaning of the term. *Cirba v. VMWare*, No. 1:19-cv-00742, ECF No. 1160 (D. Del. Feb. 24, 2022) (Stark).

District Court: Case stayed where only five of fourteen petitions had been instituted (with two awaiting institution decisions). Plaintiff's complaint alleged that Defendant infringed twenty-six claims across thirteen patents owned by Plaintiff. Defendant filed thirteen IPR petitions and one PGR petition challenging all claims of the asserted patents. Before any PTAB institution decisions, Defendant moved to stay the litigation. The PTAB then instituted IPR for five petitions, denied IPR for seven petitions and denied the PGR petition, with two IPR petitions awaiting an institution decision. The Court granted the motion and stayed the case, finding that review of even five of the fourteen petitions would simplify the trial. The case was in an early stage, with no scheduling order or trial date set. Although the Court noted that the undue prejudice factor may have weighed slightly against a stay because Plaintiff competed with Defendant, that factor did

not outweigh the other factors favoring the stay. *Centripetal Networks, Inc. v. Palo Alto Networks, Inc.*, No. 2:21-cv-00137, ECF No. 285 (E.D. Va. Mar. 1, 2022) (Young).

District Court: Collateral estoppel from CAFC affirmance of PTAB decision limits expert testimony in related litigation. Defendants moved to strike opinions of Plaintiff's expert, contending that a Federal Circuit affirmance of a related PTAB decision precluded Plaintiff from re-litigating the issues those opinions addressed. The Court barred Plaintiff's expert from offering opinions contradicting the Board's factual findings about the prior art's teachings, as those findings were necessary to the Board's judgment. The Court also barred the expert from contesting the Board's invalidity findings. But the Court allowed Plaintiff's expert to offer other opinions about claims not invalidated in a PTAB decision affirmed by the Federal Circuit. *ParkerVision, Inc. v. Qualcomm Inc.*, No. 6:14-cv-00687, ECF No. 683 (M.D. Fla. Mar. 9, 2022) (Byron).

District Court: Stay denied where Defendant challenged only two of four asserted patents. Defendant moved to stay two district court cases pending resolution of IPRs challenging patents asserted in those cases. Because Defendant did not challenge two other patents asserted against it by the plaintiff, the Court found that a stay would not simplify the issues. The Court also noted that the defendant did not file its IPR petitions until weeks before the Markman hearing, fact discovery was completed, and trial is scheduled to begin in 8 months. The Court also found that a stay would be prejudicial to the plaintiff. Accordingly, the Court denied the motion. *WSOU Investments, LLC v. F5 Networks, Inc.*, No. 2:20-cv-01878, ECF No. 170 (W.D. Wash. Mar. 14, 2022) (Rothstein).

District Court: No attorney's fees despite an earlier successful IPR against other claims of the asserted patent. During previous litigation, Defendant filed an IPR petition against seven claims of the asserted patent. The Court dismissed that previous litigation for lack of standing and awarded attorneys' fees to Defendant. Meanwhile, the Board held that the seven challenged claims were unpatentable, and the Federal Circuit affirmed in 2019. Plaintiff then asserted the unchallenged claims in a new lawsuit against Defendant. Defendant moved to dismiss for collateral estoppel, then filed an ex parte reexamination request citing the references it raised in its earlier IPR petition. After the Office found a substantial new question of patentability, Defendant moved to stay the litigation over Plaintiff's opposition. Plaintiff then failed to respond to the first office action in the reexamination, and the Office cancelled the remaining claims. Defendant then moved for attorneys' fees in the litigation. The Court declined to grant attorney's fees, finding that it could not say that Plaintiff's decision to proceed with litigation was frivolous. In addition, the Court declined to hold that Plaintiff's decision to oppose the stay but decline to respond to the office action was so egregious that it made the case exceptional. *Vedanti Licensing Limited, LLC v. Google LLC*, No. 5:21-cv-01643, ECF No. 82 (N.D. Cal. Mar. 16, 2022) (Davila).

District Court: Plaintiff's loss of 8 of 12 patents at the PTAB does not preclude it from recovering costs after otherwise prevailing in litigation. Plaintiff asserted twelve patents against Defendant. Defendant asserted invalidity counterclaims against each patent and filed CBM petitions against the asserted patents. Defendant prevailed against eight of the twelve patents in the CBM review proceedings. The Court held two additional patents ineligible on summary judgment. In a jury trial for the remaining two patents, the jury found that Defendant infringed both patents, though not willfully. The Court entered judgment for Plaintiff and awarded costs. The Court found that

because eight of the twelve patents were invalidated in separate proceedings and withdrawn in the case, Plaintiff did not lose its claims related to those patents in the litigation. And despite Plaintiff prevailing on only two of the remaining four patents, Plaintiff's success on those patents was enough to obtain an award of costs. *Brumfield v. IBG LLC*, No. 1-10-cv-00715, ECF No. 2240 (N.D. Ill. Mar. 31, 2022) (Kendall).

District Court: Acceleration of trial date at Plaintiff's request denied in light of possible PTAB discretionary denial. After Plaintiff dismissed one of the two patents it asserted, Plaintiff moved to accelerate the trial date from December 2023 to February 2023 and to cancel summary judgment briefing. Defendant, meanwhile, had filed an IPR petition that was awaiting an institution decision. If instituted, the IPR's final written decision would have been due in August 2023—after the accelerated trial date Plaintiff sought. Defendant therefore contended that it would suffer prejudice if the PTAB discretionarily denied Defendant's petition based on the accelerated trial date. Defendant also argued that it would suffer prejudice from a lack of summary judgment briefing. The Court agreed with Defendant, holding that advancing the trial date and foreclosing summary judgment motions would cause Defendant substantial prejudice. *Skills Platform, Inc. v. AviaGames Inc.*, No. 5:21-cv-02436, ECF No. 98 (N.D. Cal. Mar. 31, 2022) (Freeman).

District Court: Where an institution decision denies a single-reference ground, a combination involving that reference with another reference is an estopped non-petitioned ground. Plaintiff moved for partial summary judgment of no invalidity over grounds that Plaintiff contended were subject to IPR estoppel. In the IPR, Defendants' petition raised four obviousness grounds, each based on a different reference: (1) Pandit; (2) Miller; (3) Luciw; and (4) LiveDoc/Drop Zones. In a pre-SAS Institute decision, the PTAB instituted the Pandit ground and denied the other three grounds. The Pandit ground went to a final written decision. The Court held that Pandit by itself was estopped. The Court also held that Defendants' combinations of Pandit with Miller, Luciw, or LiveDoc/Drop Zones were estopped as non-petitioned grounds. *Arendi S.A.R.L. v. LG Elecs., Inc.*, No. 1:12-cv-01595, ECF No. 359 (D. Del. Apr. 8, 2022) (Stark).

District Court: Pre-institution motion to stay in competitor litigation denied. Two weeks after Defendant filed an IPR petition against all asserted claims of the patent-in-suit, Defendant moved to stay the litigation. The Court stated that the stage of the case somewhat favored a stay: although claim construction briefing was complete, discovery was not, and the trial date was nearly two years away. But because the PTAB had not yet decided to institute, the likelihood of simplification as speculative at best, weighing against a stay. And although the Court found the Defendant diligently filed its IPR petition and moved for a stay, the parties' status as competitors tipped the prejudice factor against a stay. Balancing those factors, the Court denied Defendant's motion. *Skillz Platform Inc. v. AviaGames Inc.*, No. 5:21-cv-02436, ECF No. 105 (N.D. Cal. Apr. 13, 2022) (Freeman).

District Court: Collateral estoppel from a PTAB decision takes out one asserted claim, but the rest survive. Defendants moved for judgment on the pleadings, asking the Court to apply collateral estoppel to bar Plaintiff from asserting claims "materially the same" as claims held unpatentable in an IPR proceeding. For most asserted claims, the Court denied the motion, because the asserted claims included additional limitations that distinguished them from the claims the PTAB held unpatentable. The Court also found that differences between the claim construction standard in

the IPR proceeding and in the district court litigation weighed against applying collateral estoppel when the parties have different interpretations of asserted claims. But for an asserted claim that recited the same features as a claim the PTAB held unpatentable, the Court found that Plaintiff's arguments regarding differences in burdens of proof between IPR proceedings and district court litigation was not enough to avoid judgment on the pleadings. *XR Commc'ns, LLC v. D-Link Sys., Inc.*, No. 8:17-cv-00596, ECF No. 313 (C.D. Cal. Apr. 18, 2022) (Carter).

District Court: Court declines to exclude Defendant's system art based on IPR stipulations. Defendant previously stipulated in IPRs challenging the patents-at-suit that "if this IPR is instituted, it will not advance the grounds that are raised or reasonably could have been raised in this IPR" in the district court case. Plaintiff moved in limine to preclude Defendant from asserting system references that had a related publicly available printed publication that could have been raised in the IPRs. Defendant argued that the system references could not have been raised and have relevant features not disclosed in the related publications. The Court, noting a split in treatment by district courts and finding that it is not clear that the related publications fully describe all relevant features of the asserted systems, denied Plaintiff's motion.

In the same case, Plaintiff moved in limine to preclude Defendant from arguing that the claims were invalid for lack of written description. Plaintiff contended that because an IPR petitioner can challenge a claim's priority date by attacking the written description of the claim's parent applications, it follows that Defendant reasonably could have raised written description challenges in the IPRs. The Court rejected Plaintiff's argument because the PTAB can only hold claims unpatentable for anticipation or obviousness in an IPR, and cannot hold claims unpatentable for lack of written description. *United Servs. Auto. Ass'n. PNC Bank N.A.*, No. 2:20-cv-00319, ECF No. 614 (E.D. Tex. Apr. 28, 2022) (Payne).

District Court: Post-verdict appealable PTAB decisions do not affect the closeness of the case for enhanced damages. Plaintiff prevailed at trial and obtained a verdict of willful infringement. The Federal Circuit affirmed on infringement, validity, and willfulness, but vacated and remanded the damages award. Meanwhile, after the district court trial, the PTAB instituted IPRs and held the asserted claims unpatentable in final written decisions that are still subject to appeal. Back in the district court, Defendant moved for a reduction in enhanced damages, citing the PTAB's decisions as evidence of the closeness of the case. The Court declined to reconsider the factors bearing on enhanced damages, but held that even if it did revisit those factors, the PTAB's decisions would not have changed the Court's previous conclusion that the case was not close. The Federal Circuit had affirmed on infringement, validity, and willfulness, and the PTAB's final written decisions remained subject to appeal. *Packet Intelligence LLC v. NetScout Sys., Inc.*, No. 2:16-cv-00230, ECF No. 396 (E.D. Tex. May 4, 2022) (Gilstrap).

District Court: Possible IPR time bar does not factor into district court's stay decision. Defendant moved to stay the district court litigation after filing an IPR petition. In its opposition to that motion, Plaintiff contended that the IPR petition would not simplify the issues because the IPR petition was time-barred under 35 U.S.C. § 315(b). After analyzing the stay factors, the district court granted Defendant's motion to stay. The Court declined to credit Defendant's argument about the time-bar issue because it was "a question for the PTAB, not this Court." *VPR Brands LP v. Jupiter Research LLC*, No. 2:20-cv-02185, ECF No. 50 (D. Ariz. May 5, 2022) (Humetawa).

District Court: Preliminary injunction requiring Petitioner to withdraw its petitions not stayed pending Petitioner's possible appeal to the Supreme Court. Plaintiff had previously filed a complaint against Defendant for breach of contract after Defendant filed seven IPRs against Plaintiff, seeking an injunction based on a forum selection clause in an agreement between the parties. On appeal, the Federal Circuit found that all four preliminary injunction factors weighed in favor of Plaintiff, and remanded the case for entry of the injunction. Plaintiff and Defendant did not agree on the form on the injunction. Plaintiff proposed an order to enjoin Defendant from proceeding with its IPRs and require that Defendant withdraw its IPR petitions. Defendant proposed an order that would have required Defendant to stay its participation in the IPR proceedings while Defendant contemplated a petitioning for a writ of certiorari at the Supreme Court. The Court chose Plaintiff's proposal and entered a preliminary injunction requiring Defendant to withdraw its IPR petitions. *Nippon Shinyaku Co., Ltd. v. Sarepta Therapeutics, Inc.*, No. 1:21-cv-01015, ECF No. 111 (D.D.E. May 16, 2022) (Noreika).

District Court: IPR not part of "case" under 35 U.S.C. § 285. After prevailing in an IPR, Defendant moved for an exceptional case finding and attorneys' fees, including fees it incurred during the IPR. The Court held that the IPR was not part of the patent infringement "case" under 35 U.S.C. § 285 because Defendant voluntarily sought the IPR. Thus, the Court held that attorneys' fees accrued during the IPR were unavailable, and any alleged misconduct that occurred during the IPR could not be used to support an exceptional case finding. *Sherwood Sensing Sol'ns v. Henny Penny Corp.*, No. 3:19-cv-00366, ECF No. 46 (S.D. Ohio May 20, 2022) (Newman).

District Court: Confidential infringement contentions unavailable for use at PTAB. The PTAB ordered Plaintiff to produce its confidential infringement contentions in related IPRs, but it did not require Defendants to use those contentions in any PTAB filings. Defendants then used Plaintiff's infringement contentions in those IPRs. In district court, Plaintiff argued that Defendants violated the protective order by using the confidential infringement contentions in the IPRs. The Court found no violation of the protective order, but did prohibit Defendants from using the confidential infringement contentions in any filings in related IPR proceedings. *Parkervision, Inc. v. TCL Indus. Hldgs. Co., Ltd.*, No. 6:20-cv-00945, ECF No. 65 (W.D. Tex. May 24, 2022) (Gilliland).

District Court: No plausible infringement claim where infringement allegations contradict IPR statements about claim scope. Defendant moved to dismiss Plaintiff's infringement complaint for failure to state a plausible infringement claim. The Court held that Plaintiff did not adequately plead its infringement allegations given its statements in a previous IPR. Taking judicial notice of Plaintiff's statements in that IPR, the Court held that Plaintiff disavowed a construction for a claim term in that IPR and that Plaintiff's infringement allegations relied on the disavowed construction. Finding Plaintiff's remaining infringement allegations inadequate, the Court dismissed Plaintiff's infringement claims with prejudice. *Grecia Estate Holdings LLC v. Meta Platforms, Inc.*, No. 6:21-cv-00677, ECF No. 45 (W.D. Tex. June 6, 2022) (Albright).

District Court: PTAB and ex parte reexamination decisions excluded from jury trial. Plaintiff moved in limine to exclude evidence of an inter partes review proceeding in which a dependent asserted claim was not challenged, but its parent independent claim was held unpatentable. Defendant moved in limine to exclude evidence about an ex parte reexamination in which the USPTO confirmed several new claims that Plaintiff presented were confirmed as patentable. The

Court granted both motions, holding that “the relevance of any proceedings before the USPTO or PTAB is substantially outweighed by the risk of unfair prejudice and jury confusion.” *Trustees Univ. Pa. v. Eli Lilly & Co.*, No. 2:15-cv-06133, ECF No. 396 (E.D. Pa. June 10, 2022) (Diamond).

District Court: No IPR estoppel or common-law estoppel where no IPR instituted. Defendant had previously filed three IPR petitions, but the PTAB declined to institute IPR for any of them. Meanwhile, in district court litigation, Plaintiff asserted an affirmative defense to Defendant’s claim for a declaratory judgment of invalidity that “[Defendant] is estopped and/or precluded from relying on alleged prior art in connection with its invalidity positions associated with its petitions for inter partes review.” Defendant moved to strike that defense. The Court granted the motion, finding no possibility of statutory IPR estoppel under 35 U.S.C. § 315(e)(2) because the PTAB did not issue a final written decision. Further, the Court found no common-law preclusion arising from the denied IPR petitions. *inMusic Brands, Inc. v. Roland Corp.*, No. 1:17-cv-00010, ECF No. 162 (D.R.I. June 14, 2022) (Almond).

District Court: Collateral estoppel does not preclude Plaintiff that asserts a dependent claim from arguing that prior art lacks a limitation from an independent claim held unpatentable in IPR. In previous IPRs, the Board held various independent claims unpatentable. Later, Plaintiff asserted claims that depend from the independent claims held unpatentable. Moving for summary judgment, Defendants contended that Plaintiff should be estopped from arguing that any of the limitations found in those independent claims are not found in the prior art. The Court denied Defendants’ motion based on the lower standard for proving unpatentability at the PTAB. *IOENGINE LLC v. PayPal Holdings, Inc.*, No. 1:18-cv-00452, ECF No. 511 (D. Del. June 15, 2022) (Bryson).

District Court: No prejudice to Plaintiff from staying case where patents are soon to expire. Defendant filed inter partes review petitions and then moved to stay the district court litigation. Plaintiff opposed, arguing that “a stay would make it difficult to enforce the patents-in-suit that are soon to expire.” The Court rejected that argument because Plaintiff did not practice the patents-in-suit, compete with Defendant, or seek injunctive relief. The Court held that “[t]he expiration of the patents-in-suit thus indicates a lack of prejudice, as there is little left to enforce, no market urgency, and nothing to show that monetary damages will be insufficient.” The Court stayed the district court case in view of the stage of the case, potential for simplification, and lack of prejudice to Plaintiff. *MicroPairing Techs. LLC v. Am. Honda Motor Co., Inc.* No. 2:21-cv-04034, ECF No. 82 (C.D. Cal. June 24, 2022) (Selna).

District Court: No IPR estoppel for prior art products even if cumulative to IPR references. Plaintiff moved for summary judgment on IPR estoppel to prevent Defendants from asserting invalidity based on prior art products. Although Defendants could not have raised those products during previous IPRs, Plaintiff argued that the products were cumulative to references asserted in the IPRs so that estoppel nonetheless applied. The Court disagreed and denied summary judgment, holding as a matter of statutory interpretation that IPR estoppel does not apply to prior art products, even if cumulative. Recognizing the split in district courts addressing that issue, the Court stated that in the absence of guidance from the Supreme Court or Federal Circuit, it would align with those district courts that adhered more closely to the statutory language. *Chemours Co. FC, LLC v. Daikin Indus. Ltd.*, No. 1:17-cv-01612, ECF No. 405 (D. Del. Jul. 8, 2022) (Noreika).

District Court: PTAB's decision to deny institution not enough for summary judgment of no invalidity. The Board denied Defendant's IPR petitions, which asserted a set of references against Plaintiffs' patents. Later, in district court, Plaintiffs moved for summary judgment of no invalidity over that set of references. The Court denied Plaintiffs' motion. Despite the Board's non-controlling decisions denying institution, a reasonable jury could have found that Defendants' expert's opinions about those references were supported by those references, and thus a reasonable jury could find by clear and convincing that the asserted patents were obvious over that set of references. *Altria Client Servs. LLC v. R.J. Reynolds Vapor Co.*, No. 1:20-cv-00472, ECF No. 296 (M.D.N.C. July 14, 2022) (Tilley, Jr.).

District Court: In four-patent case, after pre-institution motion to stay denied, renewed motion to stay denied after one IPR petition was instituted. Plaintiff sought declaratory judgment of non-infringement. Plaintiff then filed three IPR petitions and one PGR petition. Plaintiff moved for a pre-institution stay of the litigation. The Court denied the motion to stay, finding that a stay would be inappropriate in light of the undue prejudice to Defendant, the lack of simplification, and the stage of the litigation. The Board later granted institution on one of the IPR petitions, and Plaintiff moved to stay the proceedings for a second time. The Court again denied the motion, as the only changed circumstances were the institution of one IPR and some progress in the litigation. Because IPR review was only granted on one of the four patents at issue, the Court found that the stay would not necessarily simplify the issues and denied the motion. *Kerr Machine Co. v. SPM Oil & Gas, Inc.*, No. 4:21-cv-01191, ECF No. 65 (N.D. Tex. Aug. 9, 2022) (O'Connor).

District Court: Defendant's lack of IPR petition against one patent does not warrant lifting stay as to other patent. In a case stayed pending final resolution of an IPR against a first patent, Plaintiff moved to partially lift a stay as to a second patent. In its earlier motion to stay, Defendant stated that it intended to file an IPR petition against the second patent once it became IPR-eligible. Plaintiff argued that the Defendant had over eight months to file a petition against the second patent but did not do so. The Court denied Plaintiff's motion, stating that the Court's decision to stay the case was not predicated on Defendant challenging the second patent in IPR or its representation that it would do so. *Zeavision, LLC v. Bausch & Lomb Inc.*, No. 4:21-cv-00739, ECF No. 52 (E.D. Mo. Aug. 10, 2022) (Sippel).

District Court: Inequitable conduct mini-trial permitted after all patent claims cancelled during reexamination. The Court stayed litigation pending ex parte reexamination of an asserted patent. The asserted claims of the patent were cancelled in the reexamination. Plaintiff moved to dismiss its infringement allegations and Defendant's counterclaims for noninfringement, invalidity, and unenforceability. Defendant agreed to dismiss its counterclaims for noninfringement and invalidity, but refused to dismiss its counterclaim for unenforceability because it sought an award of attorney's fees under 35 U.S.C. § 285 based on inequitable conduct. Although the Court dismissed Defendant's unenforceability counterclaim as moot, it allowed Defendant to proceed with its inequitable conduct allegations via a motion for attorney's fees because the Court retained jurisdiction to decide whether the case was exceptional under 35 U.S.C. § 285. The Court stated that it would schedule a bench-trial-style evidentiary hearing to prove any factual disputes arising from Defendant's motion. *Parallax Grp. Int'l, LLC v. Incstores LLC*, No. 8:16-cv-00929, ECF No. 315 (C.D. Cal. Aug. 16, 2022) (Selna).

District Court: With one IPR instituted and two denied for related patents, motion to lift pre-institution stay denied. After Defendant petitioned for IPR of three related patents, the Court granted a pre-institution stay. The Board instituted one petition but denied the other two. Plaintiff moved to lift the stay based on the denials of institution and recent Securities and Exchange Commission filings allegedly revealing Defendant as Plaintiff's direct competitor. The Court declined to lift the stay because the stage of the case remained early, lifting the stay would invite piecemeal discovery, and a final written decision in the instituted IPR proceeding would be due within five months. *AbCellera Biologics, Inc. v. Berkeley Lights, Inc.*, No. 4:20-cv-08624, ECF No. 131 (N.D. Cal. Aug. 22, 2022) (Tigar).

District Court: Patent Owner's arguments in IPR that Petitioner failed to explain why disclosure met claim limitation does not amount to prosecution disclaimer. In a claim construction dispute in district court, Defendant argued that Plaintiff disclaimed claim scope in Plaintiff's preliminary response to Defendant's IPR petition. In that preliminary response, Plaintiff argued that Defendant had not construed a particular claim term, nor explained why a prior art reference met that claim term; the Board agreed and denied institution. The Court found that the Plaintiff had not disclaimed claim scope because Plaintiff instead argued that Defendant had not met its burden of explaining claim terms or how the prior art applied. *NantWorks, LLC, v. Niantic, Inc.*, No. 3:20-cv-06262, ECF No. 135 (N.D. Cal. Sep. 2, 2022) (Beeler).

District Court: Court lifts stay after IPR final written decision while appeal pending. Defendant moved for and obtained a stay "pending resolution" and "completion" of an IPR. The Board determined that Petitioner had not proven the asserted claims unpatentable in a final written decision, and Plaintiff moved to reopen the case. Defendant opposed, based on its pending appeal of that decision. The Court reopened the case because its stay was only for the duration of the IPR. The Court explained that if Defendant had wanted the stay to extend through appeal, it should have argued that point when it first sought the stay. Finally, the Court refused to grant an additional stay during the appeal, stating that "it is time for [Plaintiff] to have its day in court." *Targus Int'l LLC v. Group III Int'l Inc.*, No. 1:20-cv-21435, ECF No. 87 (S.D. Fla. Sept. 12, 2022) (Scola).

District Court: Board's denial of PGR petitions for lack of particularity does not warrant summary judgment of no invalidity. The Board declined to institute Defendant's PGR petitions against Plaintiff's patents. Although the Board recognized that the petitions each potentially contained a meritorious ground, it found that Defendant's "scattershot approach" and "voluminous and excessive possible grounds" fell short of the statutory requirement to present grounds with particularity. Plaintiff then moved for summary judgment of no invalidity over the prior art and arguments presented in the rejected petitions. The Court denied Plaintiff's motion. The Court stated that neither the Board's decisions nor its reasoning bound the Court, and that the Board had not found the claims valid. The Court also found that Plaintiff failed to show that evidence in the district court record was insufficient with respect to an essential element of Defendant's invalidity defense or counterclaims. *DynaEnergetics Europe GmbH v. Hunting Titan, Inc.*, No. 4:20-cv-02123, ECF No. 196 (S.D. Tex. Sept. 19, 2022) (Lake).

District Court: A final decision in an inter partes reexamination may create cross-patent collateral estoppel. The Court held that a final decision in an inter partes reexamination may have preclusive effect if the ordinary elements of issue preclusion are met. Here, the Court found that a final

decision in inter partes reexaminations of two patents precluded certain invalidity grounds the Defendant raised against a third patent, because the reexamination and litigation involved the same issue. The Defendant's invalidity grounds were materially identical to those presented in the reexamination. Although reexaminations and litigation have different standard of proof, the Defendant's failure to prove unpatentability under the lower preponderance standard in the reexamination precluded it from carrying its burden under the higher clear-and-convincing standard in litigation. The Court also held that Defendant had a full and fair opportunity to litigate the issues in the reexaminations because Defendant could fully participate in the reexamination. The parties did not dispute that the Office's determinations during the reexaminations were necessary to the judgments in those actions. Nor were there any special circumstances that would render estoppel inappropriate because both parties were involved in the previous reexaminations. Thus, the Court found that collateral estoppel applied, and precluded some of Defendant's invalidity grounds. *SynQor, Inc. v. Vicor Corp.*, No. 2:14-cv-00287, ECF No. 585 (E.D. Tex. Sept. 26, 2022) (Baxter).

District Court: Estoppel for grounds based on reference that could have been raised in IPR. After an IPR final written decision, Plaintiff moved for summary judgment that Defendant's grounds raising a prior art U.S. patent were estopped under 35 U.S.C. § 315(e). Defendant had not raised that U.S. patent during the IPR, and contended that it could not have reasonably raised that reference because it took four searches to locate it. But Plaintiff showed that the reference could have been found by running straightforward search terms on the CPC class to which Plaintiff's patent belonged. The Court agreed with Plaintiff that Defendant reasonably could have raised that reference, and thus that reference was subject to IPR estoppel. Because Defendant did not argue that it should not be estopped from combining that reference with other references not subject to IPR estoppel, the Court estopped all grounds based on the estopped reference. *Innovative Memory Sys., Inc. v. Micron Tech., Inc.*, No. 1:14-cv-01480, ECF No. 361 (D. Del. Sept. 29, 2022) (Hall).

District Court: No stay for yet-to-be-filed reexams against one set of patents after court stayed case pending IPRs of a different set of patents. The Court previously stayed litigation pending four IPRs of four asserted patents. In a joint status report to the Court after final written decisions in those IPRs, Plaintiff asked the Court to lift the stay, while Defendant asked the Court to maintain the stay until the Office determined whether to proceed with reexaminations of previously unchallenged patents. Defendant based its request on its recent request for ex parte reexamination of one previously unchallenged asserted patent, and indicated that it would request reexamination of three other previously unchallenged asserted patents within a month. The Court lifted the stay, citing Defendant's delay in filing the reexamination requests and its concern that Defendant sought "to continue to string things out." The Court also found that a continued stay was not likely to simplify the issues for trial, and would prejudice Plaintiff due to the potential lengthy duration of the not-yet-filed reexaminations. *MG Freesites, Ltd., v. Scorpcast, LLC*, No. 1:20-cv-01012, ECF No. 177 (D. Del. Oct. 5, 2022) (Kennelly), *Scorpcast, LLC v. MG Freesites, Ltd.*, No. 1:21-cv-00887, ECF No. 71 (D. Del. Oct. 5, 2022) (Kennelly).

District Court: Court reopens stayed litigation while request for rehearing of IPR denial is pending. In an infringement case stayed pending IPR, Plaintiffs moved to lift the stay after the Board denied Defendant's IPR petition. Defendant argued that the stay should remain in place because Defendant requested rehearing of the decision denying institution. The Court found that

the potential for IPR to simplify issues in the case was unlikely, and maintaining the stay would increase the chance of prejudice to Plaintiffs, who were direct competitors with Defendant. Accordingly, the Court lifted the stay, although it allowed Defendant to file another motion to stay if the Board granted Defendant's request for rehearing. *Smith Sport Optics, Inc. v. The Burton Corp.*, No. 1:21-cv-02112, ECF No. 88 (D. Colo. Oct. 19, 2022) (Arguello).

District Court: Motions to stay pending third-party IPRs denied in view of risk of undue prejudice and low likelihood of simplification. Defendants moved to stay district court litigation pending an IPR filed by a third party. Plaintiff argued that the stay would offer limited simplification because some of the claims it asserted were not challenged in the IPR. Further, Plaintiff argued that Defendants did not offer to subject themselves to the full scope of IPR estoppel under 35 U.S.C. § 315(e)(2), only the prior art on which the IPR was instituted. Plaintiff also argued that it would be unduly prejudiced by a stay because (1) it had a right to the timely enforcement of its patent right; and (2) it risked losing evidence during a stay. Although the Court found that the pre-Markman stage of the case favored a stay, it denied the motion to stay in view of the risk of undue prejudice and the low likelihood of simplification. *mCom IP, LLC v. Bank of America Corp.*, No. 6:22-cv-00256, ECF No. 26 (W.D. Tex. Oct. 20, 2022) (Albright); *mCom IP, LLC v. Cisco Sys., Inc.*, No. 6:22-cv-00261, ECF No. 42 (W.D. Tex. Oct. 20, 2022) (Albright).

District Court: In case stayed pending IPR and first appeal, Court lifts stay during second appeal. The Court stayed litigation pending completion of an IPR in which Defendants were the petitioners. In a first final written decision, the Board found all but one claim unpatentable. After an appeal to the Federal Circuit and remand, the Board reached the same finding in a second final written decision. Defendants then appealed the second final written decision. During the second appeal, Plaintiff sought to have the stay lifted, while Defendants argued that the stay should remain pending the second appeal. The Court lifted the stay. First, due to the age of Plaintiff's owner and primary witness, the Court found that further delay could create undue prejudice for the Plaintiff. Second, the appeal involved only a single claim of the patent, and the Board had twice upheld that claim. Third, the parties had already begun discovery, and the Court had held a Markman hearing. Taken together, the Court found that those factors warranted lifting the stay. *Fall Line Patents, LLC v. Zoe's Kitchen, Inc.*, No. 6:18-cv-00407, ECF No. 164 (E.D. Tex. Oct. 20, 2022) (Schroeder).

District Court: PTAB proceedings no excuse for untimely motion to strike inequitable conduct defense. In December 2020, Defendant filed an amended answer that raised an inequitable conduct defense based on Plaintiff allegedly withholding a figure from a prior art reference during prosecution of six of the asserted patents. Defendant then filed IPR petitions for those patents, raising the withheld figure in some of its petitions. The Board upheld the challenged claims in final written decisions. In December 2021, after those final written decisions, Plaintiff moved to strike Defendant's inequitable conduct defense. The Court denied Plaintiff's motion as untimely. Under Fed. R. Civ. P. 12(f)(2), Plaintiff's motion to strike was due within 21 days of Defendant's December 2020 amended answer. Although Plaintiff contended that its motion to strike was based on the PTAB's final written decisions, its December 2021 motion was nonetheless untimely as the 21-day window had long since run. *Chervon (HK) Ltd. v. One World Techs., Inc.*, No. 1:19-cv-01293, ECF No. 322 (D. Del. Oct. 26, 2022) (Williams).

District Court: Pre-institution stay denied where Defendant did not explain why institution was likely. Defendant moved to stay the district court litigation after filing an IPR petition but before the Board's decision on institution. Although the early stage of the case and the low risk of undue prejudice to Plaintiff favored a stay, the Court held that the lack of simplification of issues heavily weighed against a stay. In particular, the Court faulted Defendant for failing to make a persuasive case for why institution would be likely, "so any simplification of this case as a result of PTAB proceedings is speculative." Thus, "[o]n balance, the Court finds that a stay is not warranted at this time." *MZ Audio Sciences, LLC v. Sony Grp. Corp. Japan*, No. 2:22-cv-00866, ECF No. 82 (C.D. Cal. Oct. 27, 2022) (Birotte Jr.).

District Court: Stay as to patents subject to instituted IPRs; no stay as to patent where IPR was denied. Defendants filed IPR petitions against Plaintiff's four asserted patents. The Board instituted IPR for three of the patents, but denied the petition against the fourth patent. Defendants moved to stay the district court litigation. The Court stayed the litigation as to the three patents subject to the instituted IPRs, but did not stay the litigation as to the fourth patent. Although all four patents were related and had overlapping claim limitations, the Court found that any simplification of the issues would have been speculative at best. The Court noted that it was not bound by the PTAB's claim constructions, and the parties appeared to agree that any overlapping claim terms should be given their plain and ordinary meaning. Although the stage of the case was early, Plaintiff was willing to proceed on only the fourth patent, making the stage-of-the-case factor neutral or irrelevant. Finally, the Court held that Plaintiff would suffer undue prejudice from a stay because (1) Plaintiff's infringement claim for the fourth patent did not depend on the IPRs involving the other three patents; and (2) Plaintiff was a small company with limited resources, while Defendants constituted a much larger business with substantial resources. *Aortic Innovations LLC v. Edwards Lifescis. Corp.*, No. 1:21-cv-01377, ECF No. 78 (D. Del. Nov. 14, 2022) (McCalla).

District Court: PTAB expert's ability to apply prior art to claim term suggests that claim term is definite. In district court litigation, Defendant and its expert contended that a claim term in Plaintiff's patent was indefinite. In a previous IPR involving another one of Plaintiff's patents, Defendant and its expert raised a reference that taught the invention disclosed in the patent-in-suit. In applying that reference to the claims at issue in that IPR, the expert used the term Defendant was now arguing as indefinite "without any uncertainty." The Court held that that "this supports the conclusion that a skilled artisan did and would understand the claim term [at issue] with reasonable certainty." *DNA Genotek Inc. v. Spectrum Sol'ns. LLC*, No. 3:21-cv-00516, ECF No. 101 (S.D. Cal. Nov. 29, 2022) (Huie).

District Court: Court dismisses complaint due to collateral estoppel arising from PTAB decisions. In two IPR final written decisions, the PTAB held various claims of Plaintiff's patent unpatentable. In district court litigation, Plaintiff continued to assert other, slightly-differently-worded claims that had not been involved in the IPRs involving Plaintiff's patent. Defendant moved to dismiss Plaintiff's infringement complaint due to collateral estoppel arising from the IPR final written decisions. The Court granted Defendant's motion, holding that any differences between the claims held unpatentable in the IPRs and the claims that Plaintiff continued to assert did not materially alter the question of invalidity. The Court also found that the remaining elements of collateral

estoppel were met. *Kroy IP Holdings, LLC v. Groupon Inc.*, No. 1-17-cv-01405, ECF No. 127 (D. Del. Dec. 2, 2022) (Burke).

District Court: Limited preservation discovery authorized in case stayed pending IPR. The district court previously stayed litigation pending the resolution of an IPR petition that Defendant filed. Plaintiff moved for leave to take discovery of Defendant's customer names, customer contact names, and addresses, and to take preservation depositions from Defendant's customers. The Court found good cause to permit Plaintiff to take that discovery from at least some of Defendant's customers. Plaintiff presented evidence that the oil and gas industry that Defendant served is very volatile and transitory, such as evidence that most of Defendant's customers' evidence would be kept in temporary field offices that were regularly junked, and that Defendant's customers also had high employee turnover and relocation. The Court ordered Defendant to provide Plaintiff a list of Defendant's top ten customers by sales volume; the contact information for those customers; the identity of the devices sold to those customers; and the quantity of sales to those customers. The Court further ordered Defendant to preserve all of its sales records during the stay. Finally, the Court also authorized Plaintiff to take preservation depositions of three of Defendant's customers. *Well Master Corp. v. Flowco Production Sol'ns, LLC*, No. 1:21-cv-02145, ECF No. 111 (D. Colo. Dec. 8, 2022) (Mix).

Court of Federal Claims

Court of Federal Claims: PTAB and CAFC decisions vacated for procedural reasons nonetheless persuasive. In a covered business method review brought by the U.S. Postal Service, the PTAB held Plaintiff's patent ineligible under 35 U.S.C. § 101. The Federal Circuit affirmed. But the Supreme Court reversed and remanded after holding that a federal agency could not seek CBM review in *Return Mail, Inc. v. U.S. Postal Serv.*, 139 S. Ct. 1853 (2019). Back in the Court of Federal Claims, the United States moved for summary judgment of ineligibility under 35 U.S.C. § 101. After conducting its own analysis, the Court granted the United States' motion. Although the Court held that the Federal Circuit's ineligibility opinion lacked preclusive effect, the Court nonetheless found that opinion persuasive. *Return Mail, Inc. v. United States*, No. 1:11-cv-00130, ECF No. 208 (Ct. Fed. Cl. Apr. 6, 2022) (Lettow).

Court of Federal Claims: Case stayed pending ex parte reexaminations requested by third party. In 2015, Plaintiff sued the United States for patent infringement. The United States filed an IPR against an asserted patent. The PTAB found the claims unpatentable, but its final written decision was vacated under *Return Mail, Inc. v. U.S. Postal Service*, 139 S.Ct. 1853 (2019), which held that the United States cannot petition for IPR. Numerous motions, extensions, and delays requested by the parties, along with the COVID-19 pandemic, caused delays in the proceedings. A non-party then requested ex parte reexaminations of the asserted patents, and the USPTO rejected claims in two of the three patents. The United States sought a stay pending the outcome of the ex parte reexaminations. Despite being late in litigation, a trial date had not yet been set, and Defendants had not completed discovery. Accordingly, the Court found that the stage of litigation weighed only slightly in favor of granting a stay. The Court found that a stay pending reexamination would likely simplify or eliminate the issues related to the patents, strongly weighing in favor of granting a stay. The Court further found that the potential for undue prejudice weighed in favor of granting a stay. The Court therefore stayed the litigation pending final decisions in the ex parte

reexaminations. *3rd Eye Surveillance v. United States*, No. 1:15-cv-00501, ECF No. 617 (Fed. Cl. July 27, 2022) (Lettow).

U.S. International Trade Commission Cases

ITC: No judicial notice of PTAB decisions and EPO documents not included in parties' exhibit lists. Respondents asked the ITC to take judicial notice of two EPO notices of opposition “for the limited purpose of establishing the identifies of prior art references” that were discussed but not identified by application number in Complainants’ discovery responses. The ITC denied the motion under Ground Rule 9.4.14.1 because the documents were not on Respondent’s exhibit lists and were untimely. The ITC found Respondents’ motion similar to Complainants’ previous motion seeking judicial notice of PTAB decisions declining to institute IPRs against certain patents, a motion the ITC also denied for the same reasons. In the Matter of Certain Automated Storage and Retrieval Systems, Robots, and Components Thereof, Inv. No. 337-TA-1228, Order No. 66 (Int’l Trade Comm’n Dec. 6, 2021) (Bullock).

ITC: Ongoing PTAB proceedings no basis to stay remedial order. In an Initial Determination, the ITC found that Respondent violated 19 U.S.C. § 1337 by importing certain devices that met the asserted claims of two of Complainant’s patents. Respondent requested that the ITC should stay any remedial order until the PTAB issued final written decisions in instituted IPRs on the asserted patents. Distinguishing the present case from In the Matter of Certain Laparoscopic Surgical Staplers, Reload Cartridges, and Components Thereof, Inv. No. 337-TA-1167, Comm’n Op. at 64 (Int’l Trade Comm’n Dec. 20, 2021)—which involved IPRs that had already reached final written decisions—the ITC rejected Respondent’s request to stay the remedial order. The ITC explained that Certain Laparoscopic Surgical Staplers “concerned an issued final written decision, not the mere institution of an IPR as is the present situation.” In the Matter of Certain Wearable Electronic Devices with ECG Functionality and Components Thereof, Corrected Initial Determination, Inv. No. 337-TA-1266 (Int’l Trade Comm’n June 27, 2022).

ITC: Request to modify protective order to use confidential information at PTAB denied. Complainant asserted five patents in an ITC investigation. Respondent filed IPR petitions against four of the asserted patents. During the investigation, Respondent produced confidential information. Contending that the confidential information related to objective indicia of non-obviousness and that similar issues were before both the ITC and the PTAB, Complainant moved to amend the protective order to permit the use of that confidential information in the IPRs. The Commission denied Complainant’s motion, finding that Complainant failed to establish good cause for amending the protective order. Complainant’s motion did not cite any precedent for amending the protective order. Further, “Commission policy also weighs against amending the protective order, because discovery in section 337 proceedings relies on the parties’ willingness to produce confidential business information.” Finally, the Commission rejected Complainant’s argument that Complainant may not be able to obtain the same discovery at the PTAB because the PTAB may have different policy choices with respect to discovery and the protection of confidential business information. In the Matter of Certain Light-Based Physiological Measurement Devices and Components Thereof, Inv. No. 337-TA-1276, Order No. 60 (Int’l Trade Comm’n Nov. 17, 2022) (Bhattacharyya).

Patent Trial and Appeal Board Desk

Precedential

PTAB Precedential Opinion Panel: Payment effective when received by the Treasury. The Precedential Opinion Panel (POP) vacated a previous panel decision denying institution under § 315(b)'s one-year bar. Petitioner had timely filed its Petition and wired the fee payment to the U.S. Treasury in accordance with the USPTO's instructions. Treasury received the funds before the expiration of the time bar, and promptly notified the USPTO that same day. The USPTO did not receive the funds from Treasury, however, until after Petitioner's one-year bar expired. The panel majority denied the petition as time-barred under § 315(b). The POP vacated the panel's decision, holding that Treasury's confirmation of payment constituted sufficient evidence of timely payment. "The evidence of record thus establishes that, on December 16, 2020, Petitioner complied with the published USPTO instructions for sending a payment through Fedwire, and successfully transferred the full amount of the fee to Treasury NYC, the bank the USPTO specifically instructs to designate as its 'Receiver' for such payments. ... Based on the Fedwire confirmation, we understand that Petitioner did everything in its power to pay the fee as instructed, and that the fee transfer was successful." The POP denied institution, however, because the Federal Circuit recently affirmed a district court decision finding the challenged claims invalid under § 101. "Given the low probability that the Federal Circuit's judgment of unpatentability will be overturned, we do not believe PTAB resources should be devoted to addressing potential grounds of unpatentability." *Toshiba America Electronic Components, Inc. v. Monument Peak Ventures, LLC*, IPR2021-00330, Paper 19 (Jan. 14, 2022) (Boalick, joined by Hirshfeld and Bonilla).

PTAB Director Review: Director review of institution decisions. The Board previously exercised its discretion to deny institution of two IPR petitions under *Fintiv* based on the state of parallel litigation in the U.S. District Court for the Western District of Texas. Defendant was found to infringe, and the jury awarded over \$2 billion in damages. After the jury verdict, third parties filed copycats of Defendant's IPR petitions that were previously denied under *Fintiv*. The Board instituted review of the two copycat petitions. Patent Owner requested review of the institution decisions by the Precedential Opinion Panel (POP), requesting POP to decide whether the Board should deny institution of petitions "filed substantially for the purpose of harassing patent owners who prevail in Article III courts...by newly formed entities seeking to extract compensation in exchange for withdrawing such abusive challenges." POP review was denied. However, Director Vidal sua sponte initiated Director review of the institution decisions, explaining that "Director review of the Board's Institution Decision is appropriate because this case raises novel issues of law and policy, as well as issues of particular importance to the Office and the patent community."

The instituted IPRs were not stayed pending Director review. *OpenSky Indus., LLC v. VLSI Tech. LLC*, IPR2021-01064, Paper 41 (June 7, 2022) (Vidal); *Patent Quality Assurance, LLC v. VLSI Tech. LLC*, IPR2021-01229, Paper 31 (June 7, 2022) (Vidal).

PTAB Director Review: Director review granted. Patent Owner requested Director review of the Board's final written decision finding some of the challenged claims unpatentable. Claims 3-16 depend alternately from independent claim 1 or independent claim 2. The Board found claim 2 unpatentable but not claim 1. Patent Owner argued that to the extent claims 3-16 depend from claim 1, the Board should not have found claims 3-16 unpatentable. Director review was granted “because Patent Owner raises a question as to whether the Board legally erred when it found” claims 3-16 unpatentable. Director review was also granted as to “the proper interpretation of [pre-AIA] 35 U.S.C. § 112, fifth paragraph, governing multiple-dependent claiming.” Director Vidal indicated that additional briefing by the parties was warranted because the issue about the proper interpretation of § 112, fifth paragraph, “did not arise until the Board issued its Decision.” *Nested Bean, Inc. v. Big Beings USA Pty Ltd.*, IPR2020-01234, Paper 36 (June 17, 2022) (Vidal).

PTAB Director Review: Director review issues and amicus briefing schedule. Director Vidal issued orders setting the schedule for Director review of the Board's institution decisions in *OpenSky* and *Patent Quality Assurance*. Director Vidal identified the following issues for review in each case: (1) What actions the Director, and by delegation the Board, should take when faced with evidence of an abuse of process or conduct that otherwise thwarts, as opposed to advances, the goals of the Office and/or the America Invents Act (AIA); and (2) How the Director, and by delegation the Board, should assess conduct to determine if it constitutes an abuse of process, or if it thwarts, as opposed to advances, the goals of the Office and/or the AIA, and what conduct should be considered as such. Amici curiae are invited to submit briefing (limited to 25 pages) by August 4, 2022. *OpenSky Industries, LLC v. VLSI Technology LLC*, IPR2021-01064, Paper 47 (July 7, 2022) (Vidal); *Patent Quality Assurance, LLC v. VLSI Technology LLC*, IPR2021-01229, Paper 35 (July 7, 2022) (Vidal).

PTAB Director Review: Director review sua sponte initiated for discretionary denial. The Board exercised its discretion to deny institution of grounds 1-5 of a PGR petition under 35 U.S.C. § 325(d). Petitioner's grounds 1-5 included challenges based on a lack of written description and enabling support, and relied on intervening prior art due to an alleged lack of support in a parent application. The Board denied institution under § 325(d) because the Examiner rejected the claims under § 112 during prosecution, the applicant amended the claims to overcome the § 112 rejections, and Petitioner had not shown material error in examination. The Director “determine[d] that Director review of the Board's decision is appropriate because this case raises issues of particular importance to the Office and the patent community.” The Director will issue an order setting forth the schedule for Director review. *Boehringer Ingelheim Animal Health USA Inc. v. Kansas State Univ. Rsch. Found.*, PGR2022-00021, Paper 10 (Aug. 12, 2022) (Vidal).

PTAB Director Review: Director review sua sponte granted affirming institution decision. The Board instituted trial upon finding that interference estoppel did not bar Petitioner from pursuing an IPR of the challenged patent. Petitioner and Patent Owner were previously involved in an interference proceeding before the Board of Patent Appeals and Interferences (BPAI). Patent Owner argued that interference estoppel under 37 C.F.R. § 41.127(a)(1) barred Petitioner from

challenging the patent under the grounds presented in the IPR petition. The Board disagreed that interference estoppel applied because the BPAI terminated the interference based on Petitioner's application not having written description support for the claims at issue in the interference. As such, Petitioner did not raise the IPR grounds in the interference proceeding. Patent Owner then sought POP review and rehearing. The Director sua sponte initiated Director review and affirmed the Board's institution decision. The Director agreed that interference estoppel did not apply "because the Board terminated the interference based on the threshold issue of written description." Consequently, interference estoppel would not apply because Petitioner could not have raised its IPR grounds in the interference proceeding. *Zygna Inc. v. IGT*, IPR2022-00199, Paper 17 (Aug. 22, 2022) (Vidal).

PTAB Director Review: Precedential decision addressing application of General Plastic when there was a prior discretionary denial. Director Vidal sua sponte initiated Director review of two decisions denying institution under General Plastic to clarify the application of General Plastic when there has been a prior discretionary denial. Petitioner previously filed IPR petitions that were discretionarily denied under Fintiv based on the state of parallel district court litigation involving Petitioner. The Board then instituted IPR petitions filed by another party. Petitioner then filed "me-too" joinder petitions. The Board exercised its discretion to deny institution of the joinder petitions under General Plastic. The Board found that Petitioner's failure to make a Sand Revolution-type stipulation "weigh[ed] strongly" in favor of denial when evaluating the first General Plastic factor. The Director vacated the decisions denying institution. The Director explained that "allowing a petitioner the opportunity to pursue a decision on the merits in a second-filed petition, when the first-filed petition was not evaluated on the merits, best balances the desires to improve patent quality and patent-system efficiency against the potential for abuse of the review process by repeated attacks on patents." The Director indicated that "[w]here the first-filed petition under [General Plastic] factor 1 was discretionarily denied or otherwise was not evaluated on the merits, [General Plastic] factors 1-3 only weigh in favor of discretionary denial when there are 'road-mapping' concerns under factor 3 or other concerns under factor 2." Here, there were no road-mapping concerns because Petitioner did not refine its grounds "based on lessons learned from later developments." The Director also "respectfully disagree[d]" with the Board's decision that it would be inefficient to expend resources on the joinder petitions. "[T]he Board's mission to improve patent quality and restore confidence in the presumption of validity that comes with issued patents outweighs the impact on Board resources needed to evaluate the merits of a petition." *Code200, UAB et al. v. Bright Data Ltd.*, IPR2022-00861, Paper 18 (Aug. 23, 2022); IPR2022-00862, Paper 18 (Aug. 23, 2022) (Vidal).

PTAB Director Review: Director review sua sponte initiated for discretionary denial when claims held patent-ineligible in parallel proceeding. As covered in the August 26, 2022 Roundup, the Board exercised its discretion to deny institution of an IPR petition because the challenged claims were previously held patent-ineligible under § 101 in a parallel district court proceeding. The Board explained that it would be inefficient to institute trial in the IPR proceeding. The Director sua sponte initiated Director review of the decision denying institution, "because this case raises issues of particular importance to the Office and the patent community." The Director "will issue an order or decision in due course." *AviaGames, Inc. v. Skillz Platform Inc.*, IPR2022-00530, Paper 13 (Aug. 26, 2022) (Vidal).

PTAB Director Review: Precedential decision on timing of stipulations to reduce overlap with parallel litigation. The Board denied Petitioner’s request for rehearing where Petitioner waited to address Fintiv arguments until after the IPR was denied under Fintiv. The Board was not persuaded by Petitioner’s new stipulation to limit overlap between the IPR and district court litigation because Petitioner did not provide an explanation or justification for submitting the stipulation until after the decision denying institution. The Director sua sponte initiated review on “the limited question of whether the Board may reconsider a decision to deny institution based on a stipulation filed after the institution decision is made.” The Director affirmed the Board’s decision denying rehearing because “a stipulation, offered by a petitioner for the first time after a decision denying institution, is not a proper basis for granting rehearing of the decision on institution.” To avoid potential “gamesmanship,” the Director explained that “the only appropriate time for a petitioner to offer a stipulation related to the Fintiv factor 4 analysis is prior to the Board’s decision of whether to institute review.” *NXP USA, Inc. v. Impinj, Inc.*, IPR2021-01556, Paper 13 (Sept. 7, 2022) (Vidal).

PTAB Director Review: Precedential Director review decision on abuse of IPR process. Petitioner OpenSky filed a copycat petition of prior Petitioner Intel’s petition that was discretionarily denied under Fintiv. In district court, a jury issued a large award against Intel following discretionary denial of Intel’s petition. OpenSky then filed its copycat petition, which the Board instituted. The Board then joined Intel as a petitioner to OpenSky’s instituted petition. The Director granted review to consider allegations of abuse of process based on evidence that OpenSky sought payment from Patent Owner and Intel in relation to the IPR. The Director determined that OpenSky “abused the IPR process by filing this IPR in an attempt to extract payment from [Patent Owner] and joined Petitioner Intel, and expressed a willingness to abuse the process in order to extract the payment.” In addition, the Director found that “OpenSky engaged in abuse of process and unethical conduct by offering to undermine and/or not vigorously pursue this matter in exchange for a monetary payment.” The Director also found that OpenSky engaged in discovery misconduct by failing to comply with the Director’s discovery order. The Director sanctioned OpenSky by precluding OpenSky and its counsel from actively participating in the IPR. Further, the Director ordered OpenSky to show cause why it should not be ordered to pay compensatory damages to Patent Owner. Intel was elevated to the active party in the IPR. The Director ordered the Board panel to determine whether OpenSky’s petition presents a compelling, meritorious challenge, and to dismiss or maintain the proceeding based on that determination. *OpenSky Indus., LLC, Intel Corp. v. VLSI Tech.*, IPR2021-01064, Paper 102 (Oct. 4, 2022) (Vidal).

PTAB Director Review: Director Review sua sponte ordered for Board’s compelling merits decision. The Director previously determined that Petitioner OpenSky abused the IPR process, and sanctioned OpenSky by precluding it from actively participating in the IPR. Joinder petitioner Intel was elevated to the active party in the IPR. The Director ordered the Board panel to determine whether OpenSky’s petition presents a compelling, meritorious challenge under the Director’s June 2022 Interim Guidance on discretionary denials. In response, the Board found that OpenSky’s petition presented a compelling, meritorious challenge. Two days later, the Director sua sponte ordered Director review of the Board’s compelling merits decision. The Director explained that given the unique fact pattern, including that a jury had concluded that the claims were not proven invalid based on different arguments, the interests of justice would be best served by elevating Intel to lead petitioner and letting the proceeding continue “only if the record before the Board at

the institution stage demonstrated compelling merits.” The Director explained that applying the heightened “compelling merits” standard, rather than the lower “reasonable likelihood” standard, recognized the significant investment in the district court case, and under the circumstances, justice would only be served by the USPTO considering patentability grounds at this point if the record at the institution stage “made very clear that the challenged patent was one that needed to be addressed by the USPTO.” *OpenSky Indus., LLC v. VLSI Tech. LLC*, IPR2021-01064, Paper 108 (Oct. 17, 2022) (Vidal).

PTAB Precedential Opinion Panel: POP review denied but Board panel ordered to consider all issues in the POP request on rehearing. Patent Owner submitted a request for Precedential Opinion Panel (POP) review of issues raised in the Board’s final written decision. Specifically, Patent Owner argued that the Board improperly determined that two prior art references were publicly accessible because a POSITA would have been able to find the references with the benefit of research aids. A reviewing panel of Director Vidal, Chief Judge Boalick, and Deputy Chief Judge Bonilla found that the Board’s final written decision did not adequately address whether the references qualified as prior art because the Board had failed to consider whether the research aids themselves were available prior to the critical date or whether the references were accessible by way of their inclusion in distributed materials. Because the record had been fully developed on these issues, the reviewing panel noted that the original Board panel was best suited to make the appropriate factual findings. Thus, the reviewing panel denied POP review but ordered the Board, in its consideration of Patent Owner’s rehearing request, to clearly address these issues. *Liquidia Techs., Inc. v. United Therapeutics Corp.*, IPR2021-00406, Paper 81 (Oct. 26, 2022) (Vidal, joined by Boalick and Bonilla).

Routine

PTAB: Sotera stipulation overcomes Fintiv despite ten-month gap. The Board instituted review over Patent Owner’s Fintiv arguments. The ten-month gap between the looming district court trial date and the projected final written decision date weighed against institution. But Petitioner’s diligence in filing its petition nine months after being sued and five months after receiving Patent Owner’s infringement contentions (asserting 135 claims across 15 patents) and its Sotera-type stipulation outweighed the trial date. *Tianma Microelectronics Co. Ltd. v. Japan Display Inc.*, IPR2021-01028, Paper 14 (Dec. 14, 2021) (Kokoski, joined by Kalan and Roesel).

PTAB: General Plastic denial for Petitioner’s second petition. The Board denied institution of Petitioners’ second petition challenging the same patent claims, finding that all of the General Plastic factors favored denial. Petitioners did not file their second IPR until after Patent Owner filed its preliminary response the first, despite being aware of the prior art for at least 10 months. Petitioners argued that the second Petition was warranted in view of a disputed priority date. The Board was not persuaded, however, as Patent Owner informed Petitioner of Patent Owner’s position on the priority date in its infringement contentions that were served well before Petitioners filed their first Petition. The Board also found that it would be inefficient to institute because the Board had already instituted Petitioner’s first IPR. *Micron Tech., Inc. v. Unification Techs. LLC*, IPR2021-00940, Paper 14 (Dec. 15, 2021) (Ogden, joined by Arbes and McMillin).

PTAB: Petitioner may not reuse declaration from prior proceeding. Petitioner copied and re-filed another party’s earlier IPR petition that the Board had denied on Fintiv grounds. Petitioner reused an expert declaration from the earlier IPR without any changes. The Board denied institution. A third party had indicated that it had an exclusive engagement with the expert. The Board rejected Petitioner’s argument that the expert testimony was unnecessary, finding that “it strains credibility” for Petitioner argue that reliance on the declaration was not necessary when Petitioner relied extensively on the expert declaration. Further, the Board rejected Petitioner’s contention that it would seek the declarant’s cooperation if the trial were instituted, finding no evidence that the declarant would be willing to testify or cooperate. The Board concluded that Petitioner had “placed itself in this situation by relying on another party’s expert declaration” and that the circumstances did not justify instituting review. *Opensky Indus., LLC v. VLSI Tech. LLC*, IPR2021-01056, Paper 18 (Dec. 23, 2021) (Melvin, joined by Giannetti and McNamara).

PTAB: Petitioner may reuse declaration from prior proceeding. In a companion case to the above decision, the Board found that the same Petitioner could rely on an expert declaration that Petitioner reused from an earlier IPR proceeding without any change. The Board indicated that the facts of this IPR “differ significantly from those of” the other IPR, because the third party did not have an exclusive agreement with the expert declarant. While the Board explained that it was “surprised that Petitioner apparently submitted [the expert’s] declaration in this proceeding without first seeking [his] cooperation,” the Board found that there was “no reason to think [that the expert] would be unwilling to participate, given his prior participation in the [earlier] IPRs.” The Board indicated that if the expert adopts his prior assertions for purposes of this IPR and undergoes cross-examination, the normal discovery process can take place. *Opensky Indus., LLC v. VLSI Tech. LLC*, IPR2021-01064, Paper 17 (Dec. 23, 2021) (Melvin, joined by Giannetti and McNamara).

PTAB: Sand Revolution stipulation overcomes Fintiv despite five-month gap. The five-month gap between the scheduled trial date and the projected final written decision date weighed “slightly in favor” of denial but was outweighed by other factors. The Board credited Petitioner’s diligence in filing the petition five months after Patent Owner asserted the challenged patent. The Board also found that Petitioner’s Sand Revolution-type stipulation weighed “somewhat against” discretionary denial. In addition, the Board credited Petitioner’s “substantively strong” grounds as weighing “strongly in favor of institution.” *CoolIT Sys., Inc. v. Asetek Danmark A/S*, IPR2021-01995, Paper 10 (Dec. 28, 2021) (Melvin, joined by Tierney and Cherry).

PTAB: Fintiv denial with three-month trial gap, stipulation that does not reduce overlap, and petition filed on time bar date. The Board denied institution based on the state of parallel litigation. The Board found that the district court trial was scheduled to occur about three months prior to the final written decision, which weighed in favor of denial. The Board further indicated that, although the petition was filed before the time bar, Petitioner met that deadline by “mere hours” and that it was not without notice of which claims were at issue. The Board found that Petitioner’s filing on the time bar weighed in favor of denial. In addition, the Board found that Petitioner’s stipulation, which would apply only if the Board issued a final written decision, did not reduce overlap with the invalidity issues raised in the district court litigation. *Immersion Sys. LLC v. Midas Green Techs., LLC*, IPR2021-01176, Paper 16 (Jan. 6, 2022) (Flax, joined by Laney and Finamore).

PTAB: Hybrid stipulation avoids Fintiv denial, despite ten-month trial gap. The Board instituted review despite a ten-month gap between the trial date in district court and the deadline for issuing a final written decision. Petitioner acted diligently in filing the petition two months after receiving infringement contentions, and Petitioner’s stipulation to not pursue “any ground raised or that reasonably could have been raised in the IPR based on any one or more of the references relied upon in the Petition, alone or in combination with any other reference” weighed in favor of institution. *Uber Techs., Inc. v. AGIS Software Dev. LLC*, IPR2021-01306, Paper 10 (Jan. 7, 2022) (Ahmed, joined by Boudreau and Galligan).

PTAB: Fintiv denial reversed on rehearing. The Board had denied institution due to the advanced state of two parallel cases at the Western District of Texas (WDTX). Petitioner sought rehearing of the IPR denial after the Federal Circuit granted mandamus and ordered the WDTX to transfer the district court cases to the Northern District of California. The Board granted rehearing and instituted review. The Board explained that “the WDTX cases no longer provide any basis for exercising our discretion to deny institution.” *Google LLC v. Ikorongo Tech. LLC*, IPR2021-00205, Paper 16 (Jan. 15, 2022) (Moore, joined by Fenick and Belisle).

PTAB: Institution despite forum selection clause. Patent Owner argued that the Board should deny institution in view of a forum selection clause in an agreement between the parties requiring all disputes to be resolved in the District of Delaware. The Board declined to deny institution, noting that the District of Delaware court denied Patent Owner’s motion for a preliminary injunction seeking withdrawal of the Petition. *Sarepta Therapeutics, Inc. v. Nippon Shinyaku Co., Ltd.*, IPR2021-01134, Paper 20 (Jan. 20, 2022) (Pollock, joined by Snedden and Paulraj).

PTAB: Good cause required to submit new Fintiv stipulation with rehearing request. Petitioner originally provided a Sand Revolution-type stipulation that it would not pursue in district court the same grounds raised in the IPR petition. The Board denied institution over Fintiv, finding that this stipulation did not sufficiently alleviate concerns about overlap between the proceedings. Petitioner filed an amended, Sotera-type stipulation with its rehearing request “to specifically address any concerns raised in the [institution decision]” about the original stipulation. The Board denied rehearing, finding that Petitioner did not show good cause for the new stipulation. The Board explained that Petitioner “d[id] not provide any reason that it could not have introduced the amended stipulation before the [institution decision] was entered.” The Board found that Petitioner was aware of concerns with a Sand Revolution-type stipulation when it made its original stipulation and thus did not have good cause for its “untimely amended” stipulation. *Google LLC v. AGIS Software Dev., LLC*, IPR2020-00870, Paper 28 (Jan. 26, 2022) (Laney, joined by Jefferson and Boudreau).

PTAB: Hybrid stipulation and diligence overcomes Fintiv. The court’s trial was scheduled for three and a half months before the projected final written decision date, but Petitioner diligently filed only about two months after being served with preliminary infringement contentions. In addition, the parties and the court had not made a “significant investment” in the case, as the district court’s claim construction order did not “have any direct bearing on the challenged claims.” The overlap was also mitigated somewhat by Petitioner’s hybrid stipulation to drop any invalidity ground in court relying on the same primary references as the petition, and the merits were strong.

Hyundai Motor Am. v. StratosAudio, Inc., IPR2021-01303, Paper 9 (Jan. 26, 2022) (Arbes, joined by Jung and Trock).

PTAB: No General Plastic denial despite using same supplier as earlier petitioners. The Board rejected Patent Owner's arguments that it should deny institution over General Plastic in view of previous petitions filed by other parties. Patent Owner argued that Petitioner had a "significant relationship" with those third parties because they used the same supplier and were accused of infringement based on "similar" products. The Board declined to deny institution, however, reasoning that Petitioner was not a co-defendant with the previous petitioners, and Petitioner was sued over six months after the other challengers were sued. Further, the Board found each defendant was sued based on its own product, there was no evidence that Petitioner co-developed its product with any other challenger, and Petitioner's grounds did not rely on prior art used in the other challenges. Illumina, Inc. v. Ravgen, Inc., IPR2021-01271, Paper 12 (Jan. 26, 2022) (Cotta, joined by Yang and Majors).

PTAB: Joinder petition denied under General Plastic. Six months after Petitioner filed its first IPR petition, Petitioner filed a second petition accompanied by a conditional motion for joinder seeking to join the third party's petition "if, and only if, the Board has previously denied institution" of Petitioner's first petition. The Board instituted Petitioner's first petition, and then exercised its discretion to deny institution of Petitioner's second petition under General Plastic. The Board reasoned that Petitioner did not provide an explanation why it challenged the patent twice, or why Petitioner needed two instituted IPRs on the claims that were commonly challenged between its first and second petitions. Further, a third independent IPR proceeding against the same patent was not an efficient use of the Board's resources. Apple Inc. v. GUI Global Prods., Ltd., IPR2021-01290, Paper 11 (Feb. 11, 2022) (Medley, joined by Moore and McShane).

PTAB: Additional discovery granted in view of evidence of partnership with respect to accused products. The Board granted additional discovery of communications between Petitioner and a non-party related to the IPR filing and agreements concerning accused products in litigation involving Patent Owner and the non-party. Patent Owner argued discovery was necessary to determine whether Petitioner and the non-party were in privity such that the IPR would be time-barred. The Board found that Patent Owner's evidence of a partnership between Petitioner and the non-party with respect to the allegedly infringing products established more than a mere possibility that Patent Owner would find something useful through the discovery. Perfect Corp. v. Lennon Image Technologies LLC, IPR2022-00124, Paper 10 (Feb. 11, 2022) (Arbes, joined by Galligan and Belisle).

PTAB: Disputed additional discovery denied despite supply agreement and indemnity. Patent Owner sought additional discovery related to the issue of whether a non-party, sued for infringement over a year before petition filing, was a real party-in-interest or privy of Petitioner. The Board denied Patent Owner's request for joint defense and indemnification agreements between Petitioner and the non-party and for communications related to the patent, prior art, and petition preparation because Patent Owner obtained discovery through the district court litigation. Despite this discovery, which included the supply agreement between Petitioner and depositions of relevant witnesses, the Board found that Patent Owner failed to produce sufficient evidence showing more than mere speculations that other agreements, materials, or documents existed. The

Board granted discovery of documents related to agreements between Petitioner and the non-party related to control or funding of the proceeding where Petitioner indicated a willingness to produce such documents, if any existed. *Streck, Inc. v. Ravgen, Inc.*, IPR2021-01577, Paper 14 (Feb. 11, 2022) (Majors, joined by Yang and Cotta).

PTAB: IPR instituted over Fintiv despite ITC investigation—without a Sotera stipulation. The Board instituted review despite the ITC’s target date preceding the projected Final Written Decision date by about three months. Reviewing the Fintiv factors, the Board found factors 1, 3, and 6 to be neutral. While noting the investment by the parties, the Board found factor 3 neutral because Petitioner filed the Petition “almost immediately following institution of the ITC investigation.” The Board found that the proximity of the ITC’s target date for the final determination to the projected FWD date weighed only slightly in favor of denial. Regarding overlap, Petitioner did not offer any stipulation, instead arguing that only four of the nine claims challenged in the IPR are at issue in the ITC proceeding, and that the ITC lacks the authority to invalidate the challenged patent. The Board found factor 4 weighed against denial, citing the additional, non-overlapping claims challenged in the IPR. *Volkswagen Grp. of Amer., Inc. v. Arigna Tech. Ltd.*, IPR2021-01321, Paper 10 (Feb. 15, 2022) (Baer, joined by Fenick and Ahmed).

PTAB: Motion to dismiss revised petition denied. The Board denied Patent Owner’s motion to dismiss a revised Petition that eliminated over 700 words to comply with the IPR petition word limit. The Board ruled that Petitioner’s revised Petition was properly submitted in accordance with the Board’s sua sponte order to submit a revised petition complying with the word limit. Patent Owner contended an earlier email sent by Petitioner to the Board amounted to a joint motion to terminate the proceeding and/or withdrawal of the Petition. The Board held that the email was merely Petitioner’s request for authorization to file such a motion, and the Board never granted the request because a panel had not been assigned at the time. The Board also disagreed with Patent Owner that the revised petition was not entitled to the original filing date and thus was time-barred, reasoning that Petitioner timely filed the revised petition in response to the Board’s order. The Board also declined to expunge the revised petition because the techniques (e.g., abbreviations) the petitioner used to reduce the word count were “not so extraordinary or so excessive as to warrant the extreme remedy of dismissing the Revised Petition and terminating this proceeding.” *Tesla, Inc. v. Unicorn Energy GmbH*, IPR2022-00110, Paper 19 (Feb. 17, 2022) (McMillin, joined by Jurgovan and Khan).

PTAB: Evidence of secondary considerations successfully tied to combination of claimed features “as a whole.” The Board found a nexus between the claims and evidence of long-felt need, commercial success, industry praise, and copying. The Board determined that, “[w]hen the various features of the prior art were combined to form [Patent Owner’s product], the result was a new, market-making, commercially successful product that provided significant benefits over prior art devices, received praise in the art, and was copied by competitors.” With respect to copying, the Board found that the alleged copy “reproduces the entire combination of features that were assembled for the first time” by Patent Owner. *Medtronic, Inc. v. Teleflex Life Sciences Ltd.*, IPR2020-01344, Paper 69 (Feb. 23, 2022) (Snedden, joined by Tartal and Paulraj).

PTAB: Motion to submit supplemental information denied for changing grounds. The Board instituted review but indicated that the petition had not sufficiently shown certain combinations

asserted in the petition. Following institution, Petitioner moved to submit supplemental information. Petitioner sought to submit a supplemental expert declaration that addressed the non-instituted grounds, citing inadvertent errors and omissions in the original petition and declaration. The Board agreed with Patent Owner that the supplemental declaration “introduces new citations and conclusions by [the expert] that supplant, not supplement, the original motivation-to-combine argument in the Petition.” Finding that Petitioner’s proposed supplementation went “beyond merely supplementing its position – it changes it entirely,” the Board denied Petitioner’s request. *American Well Corp. v. Teladoc Heath, Inc.*, IPR2021-00748, Paper 23 (Feb. 28, 2022) (Szpondowski, joined by Browne and Amundson).

PTAB: No General Plastic/Valve denial despite earlier petitions on same patent. The Board instituted review despite four earlier petitions challenging the same patent. Applying the first General Plastic factor and Valve, the Board found the petition was not a “follow-on” because the earlier petitions were filed by different petitioners—with no relationship to Petitioner other than being one of many defendants sued for infringement of the challenged patent on the same day. Regarding factors 2-5, the Board stated that Petitioner did not “need” to raise the challenges any earlier because it only filed one petition against the challenged patent and had no relationship to the other petitioners. *Facebook, Inc. v. Express Mobile Inc.*, IPR2021-01456, Paper 10 (Mar. 3, 2022) (Hagy, joined by Smith and Moore).

PTAB: Institution denied where grounds were based on patent owner’s district court claim construction, which the district court did not adopt. Petitioner presented grounds that were based on Patent Owner’s district court claim constructions, which Petitioner argued were too broad. The district court later rejected those claim constructions, and Patent Owner’s Preliminary Response argued that the Board should adopt the district court’s construction. Because Petitioner’s grounds were “based on claim constructions that neither party supports and the district court rejected,” the Board found that Petitioner had not established a reasonable likelihood of prevailing on those grounds. A dissenting opinion expressed the view that Petitioner had shown a likelihood of prevailing on at least one claim. *Bank of America, N.A. v. Nant Holdings IP, LLC*, IPR2021-01388, Paper 11 (Mar 3, 2022) (Roesel, joined by Lee; Weinschenk dissenting).

PTAB: Joinder motion denied because it would give petitioner second bite at the apple. After a first petitioner filed a petition challenging the same patent, a second petitioner filed a “me-too” petition with a joinder motion after being time-barred under 35 U.S.C. §315(b). In an earlier district court lawsuit, the second petitioner had filed counterclaims asserting invalidity of the patent-at-issue. Both the claims and counterclaims of that lawsuit were dismissed with prejudice. Patent Owner opposed the joinder motion, arguing that it “undermine[d] the [previous] dismissal of Petitioner’s invalidity counterclaims with prejudice.” The Board denied the joinder motion. The Board found that joinder was not warranted under the circumstances and because joining the second petitioner would offer it a second bite at asserting invalidity after the district court’s denial with prejudice. *CODE200, UAB et al. v. Bright Data Ltd.*, IPR2021-01502, Paper 13 (Mar. 14, 2022) (Giannetti, joined by McShane and Cass).

PTAB: No General Plastic denial when there was no evidence of coordination with other petitioner. Patent Owner argued that the petition should be denied because Petitioner coordinated with a third party who had previously filed a petition challenging the same patent. The Board

noted that the first General Plastic factor may be relevant “when different petitioners submit multiple petitions to challenge the same patent” but found that the present case was distinguishable from its precedential decision in Valve Corp. because Petitioner did not join the earlier petition, Petitioner was not a co-defendant with the third party, and there is no overlap between Petitioner’s and the third party’s accused products. The Board also found that there was no evidence that Petitioner and the third party coordinated the preparation of their respective petitions. The Board relied on Petitioner’s representations that its attorneys did not use the third party’s petition “as a roadmap or even consult it” and “no attorney substantively involved in preparing [Petitioner’s] petition reviewed [the third party’s] IPR.” The Board declined to exercise its discretion to deny institution. *Twitter, Inc. v. Palo Alto Research Center Inc.*, IPR2021-01430, Paper 12 (Mar. 15, 2022) (Ogden, joined by Easthom and McShane).

PTAB: No discretionary denial for unasserted patent where PO asserted multiple other asserted patents against petitioner. Petitioner filed a petition challenging a patent that was not part of a district court litigation involving Petitioner and Patent Owner. Patent Owner argued that Petitioner was “using the IPR process as a weapon to coordinate an attack ... to both neutralize its patents and as a likely litigation strategy.” Noting that no rule exists requiring petitioners to have been sued for infringement of the challenged patent in order to file an IPR petition, the Board was not persuaded to exercise its discretion to deny institution. The Board explained that “[t]here has only been a single petition” filed against the patent, and Petitioner expressed “reasonable concern that Patent Owner may initiate district court litigation regarding its as yet unasserted patents.” *Halliburton Energy Services, Inc. v. U.S. Well Services, LLC*, IPR2021-01538, Paper 9 (Mar 16, 2022) (Browne, joined by Petravick and O’Hanlon).

PTAB: Motion to exclude granted where declarant not produced for deposition. To support its argument that the proffered reference is not prior art “by another,” Patent Owner submitted declarations by the two authors of the reference, one of which was withdrawn. Petitioner requested a deposition of the non-withdrawn declarant. Patent Owner argued that the declarant was a third party and that it lacked the power to compel the declarant to testify. In lieu of a deposition by Petitioner’s counsel, Patent Owner proposed to stipulate to allow Petitioner to submit transcripts from a related Korean proceeding. Petitioner sought to exclude the declaration because its own counsel was not afforded an opportunity to cross-examine the declarant. The Board granted the motion to exclude the declaration because Patent Owner failed to make the declarant available for cross-examination. *Vudu, LLC v. Ideahub, Inc.*, IPR2020-01688, IPR2020-01689, Paper 47 (Mar. 16, 2022) (Ullagaddi, joined by Moore and Quinn).

PTAB: Fintiv denial based on earlier target date in parallel ITC investigation. Patent Owner argued for discretionary denial based on a pending ITC proceeding involving the same parties, overlapping claims, and overlapping prior art. Petitioner responded that the corresponding district court litigation was stayed and any ITC validity determination was not binding outside of the ITC. The Board disagreed with Petitioner’s argument that the stayed district court proceeding was the sole appropriate benchmark. The Board reasoned that “[e]ven though the Office and the district court would not be bound by the ITC’s decision, an earlier ITC trial date may favor exercising authority to deny institution...if the ITC is going to decide the same or substantially similar issues to those presented in the petition.” The Board determined that four factors favored discretionary denial, noting that the ITC proceeding was unlikely to be stayed given that post-trial briefing was

complete, the ITC target date predated the Board’s final written decision by more than six months, and the parties and the ITC had already invested in the ITC investigation. While acknowledging that the ITC decision would not directly resolve the parties’ dispute as to 13 claims, the Board denied institution. *Google LLC v. EcoFactor, Inc.*, IPR2021-01578, Paper 9 (Mar. 18, 2022) (Howard, joined by Derrick and Abraham).

PTAB: Motion to submit supplemental information granted because the evidence reasonably could not have been obtained earlier. Patent Owner requested entry of two new exhibits, a patent and a webpage, that were introduced during the cross-examination of Petitioner’s expert in connection with his reply declaration. The Board determined that entry of the new exhibits was proper because the evidence reasonably could not have been obtained earlier. The new exhibits related to an argument that first appeared in Petitioner’s expert’s reply declaration, and the Board found that Patent Owner reasonably could not have been expected to foresee the argument raised in the reply declaration. The Board also determined that entry of the new exhibits was in the interests of justice because the evidence allegedly contradicted Petitioner’s expert’s testimony and would allow the Board to weigh the credibility of the expert’s testimony and provide for a more complete record. *Group III Int’l, Inc. et al. v. Targus Int’l LLC*, IPR2021-00371, Paper 76 (Mar. 28, 2022) (O’Hanlon, joined by Mayberry and Laney).

PTAB: Product manuals subject to confidentiality protections not printed publications. Petitioner challenged a patent with grounds based on operating manuals for a slicer, asserting that the sale and delivery of eleven slicers and accompanying operating manuals to customers within the US amounted to public availability of the manuals. Patent Owner argued that inscriptions in the manuals and sales conditions restricting transfer showed that the manuals were subject to confidentiality agreements and were not publicly available. The Board found that the manuals were distributed to a limited number of entities and that the inscriptions in the manuals and terms of the sales required confidentiality. Petitioner’s assertion that the manuals were additionally available for public review at trade shows was found insufficient. The Board denied institution, finding that the manuals upon which the challenge was based were not shown to qualify as printed publications. *Weber v. Provisur Techs., Inc.*, IPR2020-01556, Paper 67 (Mar. 31, 2022) (Jurgovan, joined by Weatherly and Ippolito).

PTAB: Petitioner improperly relied on applicant admitted prior art (AAPA) and Board lacked jurisdiction to consider AAPA-based challenge. Petitioner asserted grounds in an IPR petition that relied on AAPA in combination with one or more other references. After the petition was filed, the USPTO issued a memo setting forth binding guidance on the how the Board should consider AAPA in an IPR. The guidance aligned with a later Federal Circuit decision that AAPA in a challenged patent does not constitute “prior art consisting of patents or printed publications.” In additional briefing, Petitioner argued that it did not use AAPA as the “basis” of its ground because the substantive focus of the petition was the disclosure of other references and that the AAPA Guidance memo allows petitioners to “use AAPA to supply missing claim limitations generally known in the prior art.” The Board disagreed, finding that AAPA was improperly used as the “basis” of the invalidity ground because Petitioner relied on AAPA for numerous limitations. The Board further noted that it lacked statutory authority to find claims unpatentable on the basis of AAPA and thus did not reach a decision on the merits regarding those grounds. MED-EL

Elektromedizinische Geräte GmbH v. Advanced Bionics AG, IPR2020-01016, Paper 42 (Mar. 31, 2022) (Jeschke, joined by Daniels and Marschall).

PTAB: Fintiv denial with trial in parallel litigation scheduled 1-2 months before final written decision would issue. Patent Owner argued for discretionary denial based on pending district court proceedings involving the same parties, overlapping claims, and overlapping prior art. The Board noted that Petitioner did not address Fintiv in its Petition or request a preliminary reply. While the Board determined that factor 3 weighed against denial because there was limited investment in the invalidity issues in the parallel district court proceedings, the Board determined that three other Fintiv factors favored discretionary denial. The scheduled trial in the U.S. District Court for the Western District of Texas predated the Board's final written decision by 1-2 months, both prior art grounds in the Petition were also included in Defendants' preliminary invalidity contentions, Petitioner had not stipulated to avoid overlap with the grounds in the parallel litigation, and Petitioner and Defendant in the parallel proceedings were the same. The Board exercised its discretion to deny institution. *eClinicalWorks, LLC, et al. v. Decapolis LLC*, IPR2022-00229, Paper 10 (Apr. 13, 2022) (Jeschke joined by Scanlon and Laney).

PTAB: Patent Owner demonstrated earlier conception and reasonable diligence in reduction to practice. Patent Owner sought to antedate an asserted reference with evidence of earlier conception and diligence to constructive reduction to practice. For conception, Patent Owner relied on the inventor's testimony to show he signed an Invention Disclosure Form a few days before the reference date and expert testimony to show the IDF disclosed each element of the challenged claims. The Board held that this evidence established a date of conception before the reference. To establish diligence in the relevant period (a little more than two months), Patent Owner pointed to an end-of-year holiday break, a patent review committee after the New Year, and several instances showing the company's patent attorney and inventor working on the figures and drafts of the patent application. Petitioner argued these activities were uncorroborated and could not justify nearly two months of inactivity. Evaluating the evidence as a whole under a rule of reason and noting that diligence need not be perfectly continuous – only reasonably continuous – the Board held that Patent Owner sufficiently showed diligence. The Board found that witness testimony and record evidence corroborated the Patent Owner's diligence argument. The Board accordingly found the reference did not qualify as prior art. *Analog Devices, Inc. v. Xilinx, Inc. et al.*, IPR2020-01599, Paper 79 (Apr. 13, 2022) (Cass, joined by Horvath and Galligan).

PTAB: Final written decision stemming from supplemental trial in view of SAS Institute not subject to statutory deadline. The Board conducted trial on a subset of grounds in the petition and issued a final written decision addressing the grounds. Subsequently, the Board granted rehearing and instituted a supplemental trial to address the previously non-instituted grounds in view of the Supreme Court's decision in *SAS Institute*. After oral hearing, Petitioner filed a motion to terminate the proceeding arguing that the Board lacked jurisdiction to render a final written decision because any final written decision issued on the previously non-instituted grounds would be outside the one-year statutory deadline. The Board denied the motion and determined that the initial final written decision addressing the originally instituted grounds satisfied the statutory deadline. The Board also determined that rehearing and supplemental trial to address the previously non-instituted grounds did not trigger another one-year statutory deadline, consistent with guidance from the Trial Practice Guide. *Laboratoire Francais Du Franctionnement Et Des*

Biotechnologies S.A. v. Novo Nordisk Healthcare AG, IPR2017-00028, Paper 107 (Apr. 13, 2022) (Mitchell, joined by Franklin and Paulraj).

PTAB: Secondary considerations of commercial success, long-felt need, and industry praise outweigh evidence of obviousness. After otherwise finding Petitioner’s prior art grounds sufficient, the Board was persuaded to find the claims non-obvious based on Patent Owner’s evidence of secondary considerations. The Board determined Patent Owner’s commercial product was coextensive with the claims and thereby entitled to a presumption of nexus. The Board rejected Petitioner’s arguments that commercial success was due to marketing activities when Petitioner did not lay out the timing of advertising and marketing activities or describe how they affected Patent Owner’s commercial success over time. The Board also found persuasive evidence of long-felt need and industry praise. Patent Owner’s evidence regarding failure of others, raised for the first time in its sur-reply, was untimely and waived. After weighing all of the evidence in light of the Graham factors, the Board found that Petitioner had not shown that the claims were obvious over the asserted prior art. *Yita LLC v. MacNeil IP LLC*, IPR2020-01139, Paper 82 (Apr. 15, 2022) (Peslak, joined by Worth and Woods).

PTAB: Industry praise found persuasive as objective indicia of non-obviousness. To overcome Petitioner’s obviousness challenge against claims directed to a heated hair-straightening brush, Patent Owner proffered objective evidence of non-obviousness, including evidence of industry praise and acceptance. Patent Owner presented evidence showing publications and professional hairstylists praising Patent Owner’s “DAFNI” brush for its ability to quickly and effectively straighten hair while protecting the user’s scalp from burns. The Board found it unnecessary to reach the issue of whether the brush was “coextensive” with the claims because the Board found Patent Owner met the nexus requirement by showing the industry praise and acceptance was the direct result of limitations in the challenged claims. Patent Owner’s “unrebutted” testimony showed that industry praise and acceptance was the direct result of the claimed subject matter and therefore met the nexus requirement. Finding industry praise and acceptance compelling evidence of non-obviousness, the Board found that Petitioner had not shown that the claims were obvious over the asserted prior art. *Ontel Prods. Corp. v. Guy A. Shaked Invs. Ltd.*, IPR2021-00052, Paper 38 (Apr. 18, 2022) (Finamore, joined by Ippolito and Peslak).

PTAB: Board declined to deny Petition on a discretionary basis or as time-barred. The Board granted institution over Patent Owner’s discretionary denial arguments under General Plastic. Despite other petitions by Petitioner’s customers challenging the same patent, the Board noted that Petitioner had not filed a petition before. Patent Owner argued that Petitioner and its customers have a “significant relationship,” that Petitioner had previously helped at least one customer in its infringement defenses, and that some overlap existed with respect to claims, prior art, and unpatentability theories among the petitions. However, the Board was persuaded by Petitioner’s arguments that it had not been accused of infringement and did not owe an obligation to indemnify any prior petitioner. The Board found that, while there may have been a degree of cooperation between Petitioner and a customer, that cooperation related to Petitioner’s products, rather than invalidity issues, and fell short of the “significant relationship” contemplated in *Valve*. Moreover, while overlap existed among the petitions, Petitioner’s challenged included a ground not advanced in any prior petition. *Streck, Inc. v. Ravgen, Inc.*, IPR2021-01577, Paper 20 (Apr. 22, 2022) (Majors, joined by Yang and Cotta).

PTAB: Petitioners' motion for additional discovery granted. The Board granted Petitioners' motion for additional discovery in the interests of justice. Petitioner sought final infringement contentions from the parallel litigation containing positions allegedly inconsistent with Patent Owner's IPR positions. Petitioners sought production of the final infringement contentions as "routine" discovery because Patent Owner's Response in the IPR allegedly raised positions inconsistent with those contentions. Alternatively, Petitioners argued that the final infringement contentions should be produced as "additional" discovery in the interests of justice. The Board granted Petitioners' motion for additional discovery because Petitioners were already in possession of the requested discovery, Petitioners established that there is more than a possibility or mere allegation that the requested discovery would yield useful information, and Petitioners could not generate equivalent information by other means. The Board declined to reach a decision as to routine discovery. *TCL Indus. Holdings Co. Ltd. et al v. ParkerVision, Inc.*, IPR2021-00985, Paper 23 (May 3, 2022) (Gerstenblith, joined by Zecher and Ahmed).

PTAB: Request for Rehearing denied based on alleged violation of duty of candor. Petitioner argued that the Board's decision denying institution should be reconsidered because Patent Owner violated its duty of candor by not disclosing positions it took in district court litigation that were allegedly inconsistent with statements made by Patent Owner in the IPR. The Board found that Petitioner did not show that Patent Owner violated its duty of candor because evidence of alleged inconsistent positions in its district court case was insufficient and/or untimely submitted. The Board was not persuaded that evidence of misconduct in the district court proceeding necessarily established misconduct in the IPR proceeding. In response to Petitioner's introduction of new evidence in its request, the Board found that Petitioner did not request a conference call with the Board or show "good cause" prior to submitting the new evidence, and thus expunged them. *Palo Alto Networks, Inc. v. Centripetal Networks, Inc.*, IPR2021-01155, Paper 16 (May 5, 2022) (Jurgovan, joined by Moore and Pettigrew).

PTAB: Institution denied in light of parallel trial scheduled 10 months before a final decision, despite stipulation. The Board denied institution under Fintiv given the advanced stage of a parallel district court litigation. Trial was scheduled to start in the Eastern District of Texas about 10 months before the projected date for issuing a final written decision. The Board found that this trial gap weighed strongly against institution. The Board was also not persuaded by Petitioner's modified Sand Revolution-type stipulation. Although Petitioner had stipulated it would not pursue invalidity based on any instituted IPR grounds, Petitioner retained the right to assert invalidity based on related references in the parallel litigation. The Board held that Petitioner's ability to raise related references weakened the stipulation and increased the possibility of overlap if both proceedings moved forward. *The Hillman Group, Inc. v. Hy-Ko Prods. Co. LLC*, IPR2022-00168, Paper 8 (May 9, 2022) (Marschall, joined by Jeschke and Laney).

PTAB: Recusal denied where Patent Owner argued the USPTO and PTAB could not be unbiased based on alleged infringement of the challenged patent. Patent Owner argued that the Board could not conduct an unbiased proceeding because the USPTO and PTAB allegedly infringed the challenged patent due to the use of "reCAPTCHA" technology on the Board's E2E page. Patent Owner argued that all Administrative Patent Judges (APJs) of the PTAB must recuse themselves. The Board found Patent Owner's arguments unpersuasive because Patent Owner relied on incorrect standards. APJs are governed by the Standards of Ethical Conduct for Employees of the

Executive Branch, not the Model Code of Judicial Conduct as argued by Patent Owner. Moreover, the Board found that recusal would not be required under any standard because Patent Owner failed to show that the IPR proceeding would implicate a financial interest of the APJs or the government that would lead to impartiality of the proceeding. Patent Owner also did not show that any financial conflict resulting from the alleged infringement would be imputed to the APJs. The Board therefore denied recusal. *Google LLC v. Defenders of the American Dream, LLC*, IPR2022-00112, Paper 10 (May 18, 2022) (Moore, joined by Boucher and Amundson).

PTAB: Fintiv denial where stay motion denied, trial scheduled 5-6 months before FWD, and invalidity expert reports already served. In support of discretionary denial, Patent Owner argued that Petitioner's motion to stay was denied in the underlying litigation, with the court finding that "a stay is not only unwarranted, but also prejudicial to [Patent Owner]" while the IPR petition "appears to be little more than a dilatory tactic." Trial was scheduled 5-6 before the PTAB would issue a final written decision. The PTAB found that this trial gap weighed in favor of denial. The Board further found that Petitioner served its opening expert report on invalidity, the rebuttal expert report deadline had passed, and Petitioner did not file petitions until a year after the underlying litigation was transferred, all favoring exercising discretion to deny. Weighing against exercising discretion to deny, the Board found Petitioner's proposed stipulation was broader than the Sand Revolution stipulation because it was not limited only to the grounds asserted in the petition. Ultimately, because the only factor weighing against discretionary denial was Petitioner's proposed stipulation, the Board exercised its discretion to deny the Petition. *F5 Networks, Inc. v. WSOU Investments, LLC*, IPR2022-00238, Paper 11 (May 19, 2022) (Hudalla, joined by Dang and Weinschenk).

PTAB: Institution denied under General Plastic in light of co-pending PGR. Applying the General Plastic factors, the Board exercised its discretion to deny institution of Petitioner's IPR petition that included a subset of arguments already advanced in an instituted post-grant review proceeding on the same patent. The same prior art references were advanced in both proceedings and no unique challenges were raised in the IPR petition, weighing strongly in favor of denial. Although a priority dispute was raised in the PGR, the dispute did not impact the prior art arguments in either proceeding. The Board also rejected Petitioner's proposal to consolidate the proceedings, finding that consolidated cases inevitably expend more Board resources than a single case. *Home Depot U.S.A., Inc. v. Link Labs, Inc.*, IPR2022-00143, Paper 17 (May 27, 2022) (Ullagaddi, joined by Tornquist and Raevsky).

PTAB: Petitioner joined to instituted IPRs involving copycats of Petitioner's previously denied petitions. As noted above, the Board instituted review of two copycat petitions that were filed after original Petitioner's petitions were denied under Fintiv. The original Petitioner then filed joinder petitions of the copycat petitions. Patent Owner argued that the Board should exercise its discretion to deny institution under Fintiv and General Plastic. The Board declined to deny institution under Fintiv. The invalidity grounds presented in the IPR were not presented to the jury, and thus there would be no overlap and "no chance of an inconsistent outcome." The Board also did not agree that "prevailing on infringement grounds in an earlier litigation insulates Patent Owner from further patentability challenges that were not resolved in the litigation." In addition, the Board declined to deny institution under General Plastic, because the Board did not deny institution of Petitioner's earlier petitions on the merits. "Allowing Petitioner the opportunity to pursue a

decision on the merits from the Board at this time—by joining [a] substantially identical petition—best balances the desire to improve patent quality and patent-system efficiency against the potential for abuse of the review process by repeated attacks on patents.” Intel Corp. v. VLSI Tech. LLC, IPR2022-00366, Paper 14 (June 8, 2022) (Melvin, joined by Giannetti and McNamara) (joined to OpenSky Indus., LLC v. VLSI Tech. LLC, IPR2021-01064); Intel Corp. v. VLSI Tech. LLC, IPR2022-00479, Paper 13 (June 6, 2022) (Melvin, joined by Giannetti and McNamara) (joined to Patent Quality Assurance, LLC v. VLSI Tech. LLC, IPR2021-01229).

PTAB: Sotera stipulation that was served but not filed in district court proceeding weighs against discretionary denial. In its Fintiv analysis, the Board noted that Petitioner indicated it had served Sotera stipulations for the challenged patents on counsel of record in the parallel litigation but did not state that the stipulations had been filed in the district court proceeding. Noting that prior Board decisions have credited Sotera-type stipulations even when they had not been filed in the parallel district court proceeding, the Board found that Petitioner’s filing of the stipulation as an exhibit in the IPR proceeding to be a representation to the Board under 37 CFR § 42.11(c) and subject to sanctions for non-compliance. Thus, the Board found that the stipulation weighed against exercising discretion to deny institution. Weighing this and the other factors, the Board declined to deny institution based on the parallel litigation. Ecofasten Solar, LLC et al. v. Unirac, Inc., IPR2022-00087, Paper 8 (June 8, 2022) (Grossman, joined by Gerstenblith and Peslak).

PTAB: Institution denied as premature where Petitioner filed both an IPR petition and a PGR petition. Petitioner filed both an IPR petition and a PGR petition on the basis that the IPR petition was conditioned on whether the patent at issue was determined to be an AIA patent. The Board reviewed evidence presented in the PGR petition and concluded that the patent is an AIA patent for which no IPR may be filed until nine months after issuance. The Board determined that since the IPR petition was filed less than six months after issuance of the patent, it was not eligible for review and thus denied the IPR petition. Apple Inc. v. MemoryWeb, LLC, IPR2022-00111, Paper 12 (June 10, 2022) (Repko, joined by Browne and Trock).

PTAB: Patent Owner’s request to extend the POPR deadline denied. The Board denied Patent Owner’s motion for extension of time to submit preliminary responses. Patent Owner sought rehearing, arguing that it had shown good cause for the extension of time because it did not receive timely notice of the IPR petitions in violation of the Fifth Amendment Due Process Clause and the Administrative Procedures Act. Petitioner served Patent Owner’s counsel of record at the correspondence address listed with the USPTO, but Patent Owner had terminated its relationship with former counsel and had not updated the correspondence address. Patent Owner argued that 37 C.F.R. § 42.105(a), which requires that the petition and supporting evidence be served on the patent owner at the correspondence address of record, fails to protect a patent owner’s right to notice. The Board noted that patent applicants are required to provide a correspondence address to the USPTO, which can be updated throughout the life of the patent, although Patent Owner had not done so here. The Board denied the rehearing request, finding that Patent Owner’s arguments were. Infineon Techs. AG v. Feinics Amatech Teoranta, IPR2022-00235 and IPR2022-00417, Paper 15 (June 13, 2022) (White, joined by Derrick, Range, and Dirba).

PTAB: Sotera stipulation alone sufficient to preclude discretionary denial under Director’s guidance memorandum. The Board instituted review despite Patent Owner’s arguments for

discretionary denial based on the state of a related district court litigation. Petitioner provided a Sotera-type stipulation to avoid overlap between the IPR and district court proceedings. The Board declined to deny institution under Fintiv in view of Director Vidal's recent guidance memorandum on discretionary denials when there is parallel litigation in district court. The Board explained that "[b]ecause our analysis of Petitioner's stipulation alone requires us to not exercise our discretion to deny institution under § 314(a), we need not address the parties' remaining arguments as to application of the Fintiv factors to the facts in this case." *RideCo Inc. v. Via Transportation, Inc.*, IPR2022-00286, Paper 12 (June 28, 2022) (Marschall, joined by Scanlon and Woods).

PTAB: Compelling evidence of unpatentability sufficient to preclude discretionary denial under Director's guidance memorandum. Patent Owner argued that the Board should exercise its discretion to deny institution based on the "accelerated schedule of the parallel pending litigation" in the W.D. Texas. The Board declined to deny institution in view of Director Vidal's recent guidance memorandum. The memorandum provides that the Board "will not rely on the Fintiv factors to discretionarily deny institution in view of parallel district court litigation where a petition presents compelling evidence of unpatentability." The Board "determine[d] that the information presented in the Petition presents a compelling unpatentability challenge," and therefore instituted review over Patent Owner's discretionary institution arguments. *STMicroelectronics, Inc. v. The Trustees of Purdue Univ.*, IPR2022-00309, Paper 14 (July 16, 2022).

PTAB: No General Plastic denial because no "significant relationship" between different petitioners. Patent Owner argued that the Board should deny institution of a second petition under General Plastic as a "follow on" petition that a second petitioner could have filed earlier. The Board previously instituted a first petition filed by a first petitioner that was sued for infringement in a separate action filed after the second petitioner was accused of infringement. Weighing the General Plastic factors, the Board declined to deny institution. The record did not support a finding of a "significant relationship" because 1) the second petitioner did not seek to join the instituted IPR filed by the first petitioner; 2) the first and second petitioners were not co-defendants in the same trial; 3) Patent Owner did not contend that the two defendants infringed by using the same products; and 4) the second petitioner challenged additional claims not challenged in the first petition. The Board found that the issue of whether the second petitioner could have raised the prior art at issue in the first petition was not relevant to General Plastic factor 2. *Samsung Elecs. Co., Ltd. et al. v. Scramoge Tech. Ltd.*, IPR2022-00284, Paper 12 (June 22, 2022) (Easthom, joined by Lee and Moore).

PTAB: No unpatentability determination when claims are indefinite. Petitioner applied Patent Owner's proposed construction from district court litigation when challenging two independent claims. The Board disagreed with Patent Owner's construction in district court, finding that the claims included indefinite language, similar to the district court's claim construction order. Because the challenged claims are indefinite, the Board indicated that it "cannot ascertain the scope of [the] claims [] with reasonable certainty for purposes of assessing patentability and thus cannot reach a decision on the merits with respect to whether Petitioner has established unpatentability of [the] claims." The Board therefore held that it could not reach a decision on the merits of the patentability challenge. *Micron Technology, Inc. v. Unification Techs. LLC*, IPR2021-00343, Paper 42 (July 8, 2022) (Arbes, joined by McMillin and Ogden).

PTAB: Compelling evidence of unpatentability precludes discretionary denial under Director's guidance memorandum. Patent Owner argued that the Board should exercise its discretion to deny institution under Fintiv based on the state of parallel litigation in district court. The Board declined to deny institution in view of Director Vidal's guidance memorandum. The memorandum provides that the Board "will not rely on the Fintiv factors to discretionarily deny institution in view of parallel district court litigation where a petition presents compelling evidence of unpatentability." Patent Owner argued that the asserted prior art did not teach two claim limitations. The Board disagreed, finding that the asserted prior art "plainly shows" the disputed limitations. The Board explained that "[b]ecause Petitioner presents compelling evidence of unpatentability at this stage, we decline to exercise our discretion under § 314(a) to deny the Petition." *Hewlett Packard Enter. Co. et al. v. BillJCo, LLC*, IPR2022-00426, Paper 16 (July 12, 2022) (Baer, joined by Dang and Weinschenk).

PTAB: Board applies median time to trial in declining to deny institution. Patent Owner argued that the Board should deny institution under Fintiv based on the state of parallel district court litigation in the Western District of Texas (WDTX). The Board declined to deny institution in view of the Director's guidance memorandum. The memorandum provides that for Fintiv factor 2, "[p]arties may present evidence regarding the most recent statistics on median time-to-trial for civil actions in the district court in which the parallel litigation resides for the PTAB's consideration." The Board noted that while the WDTX trial date is scheduled about one month before the Board would issue a final written decision, "current statistics for [WDTX] shows a median time from filing to trial in a civil proceeding to be 27.2 months." Applying that median time to trial, the Board found that "trial would occur about three months after the Final Written Decision is due." The Board determined that Fintiv factor 2 did not weigh in favor of discretionary denial. *Apple Inc. et al. v. XR Comms. LLC*, IPR2022-00367, Paper 10 (July 14, 2022) (Mayberry, joined by Quinn and Parvis).

PTAB: Fintiv denial of PGR in response to second rehearing request. Petitioner challenged several claims that were asserted by Patent Owner in district court litigation between the parties. The Board initially denied institution under Fintiv, in part, because the Board would issue a final written decision approximately four months after the scheduled trial date in the Eastern District of Texas. Petitioner requested rehearing, arguing that the PGR petition involves "essentially identical issues" as another instituted PGR petition involving different claims of the same patent that were no longer being asserted in the district court litigation. The Board granted institution on rehearing because the Board would consider essentially identical issues in both PGR proceedings, and efficiency considerations strongly weighed in favor of institution. Patent Owner then sought rehearing on the basis of changed circumstances in the parallel district court proceeding, including a finding of infringement and the jury's decision that Petitioner had not shown the challenged claims to be unpatentable. Further, Patent Owner disclaimed the claims challenged in the other PGR proceeding. The Board exercised its discretion to deny institution under Fintiv in response to Patent Owner's rehearing request. In granting review, the Board had determined that Petitioner's enablement challenge was strong on the merits. However, in view of the jury's decision that the claims do not lack enablement, the Board "cannot conclude that Petitioner's enablement case is compelling." *Daiichi Sankyo, Inc. et al. v. Seagen Inc.*, PGR2021-00030, Paper 31 (July 15, 2022) (Snedden, joined by Franklin and Kaiser).

PTAB: No Fintiv denial based on parallel ITC proceeding in view of Director’s Guidance Memo. Patent Owner argued for discretionary denial based on the state of a parallel ITC proceeding that addressed the validity of the patent. The Board declined to deny institution based on Director Vidal’s guidance memorandum. The Board noted that the ITC lacked authority to invalidate a patent and its invalidity rulings were not binding on either the Office or a district court. The Board further determined that all of Patent Owner’s arguments for discretionary denial in the case were premised on avoiding duplicative efforts between the case and the parallel ITC proceeding. The parallel district court proceeding was stayed in view of the ITC proceeding. Unified Patents, LLC v. Causam Enterprises, Inc., IPR2022-00404, Paper 10 (July 22, 2022) (McNamara, joined by Deshpande and Hudalla).

PTAB: Discretionary denial of joinder petition when jury trial conducted. Petitioners filed a “me-too” petition seeking to join an instituted IPR. Petitioners were sued for infringement and had previously filed an IPR petition that was denied under Fintiv based on the state of parallel district court litigation. The Board exercised its discretion to deny institution of the joinder petition. The Board noted that a jury trial was conducted and the jury found that Petitioners had not shown that the challenged claims were invalid. Further, the Board explained that Petitioners would not assume a typical “me too” joinder role because the petitioner of the instituted IPR had settled with Patent Owner after institution. Consequently, Petitioners “would not be acting in the role of an understudy, but would immediately assume the leading role if joinder were granted.” The Board also found that the instituted grounds and the grounds that Petitioners previously presented in the discretionarily denied petition were substantially similar. Thus, if the Board granted joinder, Petitioners would be advancing substantially the same grounds they initially relied on the previously denied petition. The Board also found that Petitioners’ failure to provide a stipulation to reduce overlap with the invalidity grounds in district court weighed in favor of denial. Code200, UAB et al. v. Bright Data Ltd., IPR2022-00861, Paper 17 (July 25, 2022) (McShane, joined by Giannetti and Cass).

PTAB: Motion to Strike denied where Patent Owner’s arguments in response could not be anticipated and Petitioners did not rely on new evidence. The Board denied Patent Owner’s Motion to Strike arguments in Petitioners’ Reply. Patent Owner argued that Petitioners had raised a new theory in Reply regarding how a claim term was met by the prior art. The Board found that Petitioners’ arguments were not improper. The Board relied on the fact that Petitioners had originally applied the same claim interpretation Patent Owner used when asserting infringement against Petitioner in district court, and Petitioners were not “required to guess” at whether Patent Owner would raise alternate positions in its Response. Further, the Board found that Petitioners’ Reply did not cite new evidence or point to different components in the prior art. The Board also found that Patent Owner was not prejudiced by having to respond in a Sur-Reply without expert rebuttal testimony. TCL Indus. Holdings Co., Ltd. et al. v. ParkerVision, Inc., IPR2022-00985 and IPR2022-00990, Paper 30 (July 26, 2022) (Gerstenblith, joined by Zecher and Ahmed).

PTAB: 325(d) applies to written description arguments previously considered by the Office. Petitioner argued that challenged claims were entitled only to their filing date and not an earlier effective priority date because priority applications did not provide written description support for two claim terms. Petitioner argued that intervening prior art rendered the challenged claims unpatentable. In its Preliminary Response, Patent Owner argued that the petition should be denied

under §325(d) because Petitioner’s written description challenge had already been substantively considered and withdrawn in a sibling application that was “examined by the same examiner at the same time” as the challenged patent. The Board denied institution because Petitioner did not dispute that “the lack-of-written-description-support arguments presented in the Petition are same or substantially the same as those the examiner considered during prosecution of the [sibling] application,” and Petitioner had “not demonstrated that the Examiner materially erred in that consideration.” *Guardant Health, Inc. v. University of Washington*, IPR2022-00449, Paper 13 (Aug. 1, 2022) (Yang, joined by New and Hulse).

PTAB: Discretionary denial where claims found ineligible under §101 in parallel district court case. A month after a Petition was filed, a district court found all claims of the challenged patent to be patent-ineligible under §101. In its Preliminary Response, Patent Owner argued that the district court’s invalidity determination served as a basis for denying institution. Petitioner’s Reply argued that the Fintiv factors should be applied and weigh in favor of institution. The Board questioned whether to apply the Fintiv factors, noting that Fintiv factors relate to parallel, co-pending district court proceedings, while the district court here found invalidity under a basis not available in an IPR. “There is no parallel consideration by a district court of the invalidity of the challenged claims of the [] patent under 35 U.S.C. §§102 or 103.” The Board determined that even if the Fintiv factors were applied, they did not weigh in favor of institution, because a Fintiv analysis “emphasizes [] concerns of efficiency.” The Board stated that its primary concerns were efficiency and preventing waste of the Board’s and the parties’ resources and determined that efficiency strongly favored denial of institution. *AviaGames, Inc. v. Skillz Platform Inc.*, IPR2022-00530, Paper 12 (Aug. 9, 2022) (McMillin, joined by Powell and Peslak).

PTAB: Email service of petition insufficient without agreement of the parties. Patent Owner argued that a petition did not satisfy the requirements of 35 U.S.C. § 321(c) because it was physically served on Patent Owner outside of the 9-month statutory window following issuance of the patent. Petitioner noted that electronic service of the Petition was provided to Patent Owner’s counsel of record via emails within the statutory window, arguing that electronic service of Patent Owner’s counsel was sufficient to meet the service requirements of 37 C.F.R. § 42.205. The Board found that under 37 C.F.R. § 42.205(b), electronic service is valid “upon agreement of the parties,” but that nothing in the record showed such an agreement. Thus, the Board held Petitioner’s emailing of the Petition to Patent Owner’s counsel to be insufficient to effect service. While the Board held that Petitioner’s email service was insufficient, the Board found that Petitioner’s service by USPS Priority Mail was sufficient. *IronRidge, Inc. v. Pegasus Solar, Inc.*, PGR2022-00024, Paper 9 (Aug. 10, 2022) (Jeschke, joined by Daniels and Melvin).

PTAB: General Plastic factors did not warrant denial for joinder petition. Petitioner filed a “me-too” petition with a motion to joinder. Patent Owner argued for discretionary denial of the joinder petition under General Plastic. Patent Owner argued that because the joinder petitioner and lead petitioner were both sued for infringing the challenged patent and asserted the same grounds, a “significant relationship” existed between the petitioners. The Board disagreed and found that the two petitioners were among nearly 100 entities that Patent Owner had sued for allegedly infringing the challenged patent. The Board also disagreed that copying the previously-instituted petition created a “significant relationship” because such copying is common in the joinder context to

satisfy the requirements of 35 U.S.C. § 314(c). *SAP Am., Inc. v. Express Mobile, Inc.*, IPR2022-00518, Paper 15 (Aug. 19, 2022) (Galligan, joined by Smith and Weatherly).

PTAB: Request for rehearing denied where Petitioner first addressed Fintiv after discretionary denial. The Board denied Petitioner’s request for rehearing of the Board’s decision denying institution under Fintiv. Petitioner did not address Fintiv in its petition or request a reply to Patent Owner’s Fintiv-based arguments. After the Board denied institution under Fintiv, Petitioner submitted new evidence related to a parallel district court proceeding, and offered a hybrid stipulation to avoid overlap between the IPR and district court proceedings. The Board declined to consider the new evidence, noting that Petitioner could have submitted it before the institution decision, and Petitioner did not show good cause for the late submission of evidence that pre-dated the institution decision. Further, the Board was not persuaded by Petitioner’s post-institution stipulation because “Petitioner [did] not offer[] any explanation or justification as to why its stipulation is being offered so late in this proceeding.” *NXP USA, Inc. v. Impinj, Inc.*, IPR2021-01556, Paper 12 (Aug. 25, 2022) (Trock, joined by Barrett and Weinschenk).

PTAB: No discretionary denial where Sotera stipulation would not prevent Petitioner from raising overlapping invalidity arguments against related patents. In arguing for discretionary denial, Patent Owner argued that Petitioner’s Sotera stipulation would not prevent Petitioner from pursuing overlapping invalidity arguments based on the same prior art in a co-pending district court case involving patents that share a specification with the challenged patent. Following Director Vidal’s guidance memorandum, the Board rejected Patent Owner’s request for discretionary denial in view of Petitioner’s Sotera stipulation. The Board explained that it “do[es] not view alleged overlap with other invalidity issues involving other patents as sufficient to support discretionary denial.” The Board was further unaware of any authority to support the argument that a Sotera stipulation was ineffective because it did not apply to unchallenged claims of unchallenged patents. *Rideco Inc. v. Via Transportation, Inc.*, IPR2022-00740, Paper 10 (Sept. 1, 2022) (Woods, joined by Scanlon and Marschall).

PTAB: Board’s decision to institute joinder IPR is not conditional. In response to Petitioner’s motion for joinder, Patent Owner indicated that it did not oppose joinder, subject to the condition that the Petitioner withdraw if the lead petitioner withdraws. The Board observed that a decision to institute review is binary – yes or no—and the Board does not make conditional institution decisions. The Board declined to rule on conditional scenarios that were not, and may never be, before it. The Board found no statutory or precedential authority to only grant joinder if Petitioner remained an understudy in the earlier IPR, and for Petitioner to withdraw if the lead petitioner withdraws. *STMicroelectronics, Inc. v. Ocean Semiconductor LLC*, IPR2022-00680, Paper 10 (Sept. 2, 2022) (Quinn, joined by Hamann and Cotta).

PTAB: Assignor estoppel does not bar an assignor from filing an IPR petition. While employed by Patent Owner, an inventor signed a declaration with a patent application indicating that he was the original inventor of the claimed invention. The claims were not amended during prosecution. The inventor later went to work for Petitioner and was the principal designer of the product accused of infringing the challenged patent. Patent Owner alleged that the inventor had knowledge of the two primary references used in all of Petitioner’s asserted grounds when he executed the declaration and assignment. Patent Owner asked the Board to reconsider the ban on assignor

estoppel in view of the Supreme Court’s decision in *Minerva*. Noting that the Federal Circuit previously held that the doctrine of assignor estoppel does not bar an assignor from filing a petition, the Board found this holding “unambiguously leaves no room for assignor estoppel in the IPR context.” The Board determined that the assignor is estopped from raising patent invalidity as a defense when, but only when, the assignor’s claim of invalidity contradicted their explicit or implicit representations made in assigning the patent. Moreover, assignor estoppel applied when an invalidity defense in an infringement suit conflicted with an explicit or implicit representation made in assigning patent rights. The Board held that an invalidity defense raised no concern of fair dealing—so assignor estoppel had no place in the IPR. *Minerva* involved a district court infringement suit, not an IPR. *Frameless Hardware Co. LLC v. C.R. Laurence Co., Inc.*, IPR2022-00620, Paper 8 (Sept. 13, 2022) (Ippolito, joined by Jeschke and Korniczky).

PTAB: No discretionary denial where petition presents compelling evidence of unpatentability. Patent Owner argued that Petitioner’s *Sotera*-type stipulation was meaningless because the parallel litigation had already reached a verdict and Petitioner is not a defendant in the litigation. The Board noted that Director Vidal’s guidance memorandum provides that “where the PTAB determines that the information presented at the institution stage presents a compelling unpatentability challenge, that determination alone demonstrates that the PTAB should not discretionarily deny institution under *Fintiv*.” The Board found “Petitioner’s invalidity grounds, if unrebutted at trial, would plainly lead to a conclusion that the challenged claims are unpatentable by a preponderance of the evidence.” Finding that Petitioner presented a compelling, meritorious challenge, the Board declined to deny institution under *Fintiv*. *Major Data UAB v. Bright Data Ltd.*, IPR2022-00916, Paper 18 (Sept. 15, 2022) (Trock, joined by Giannetti and McShane).

PTAB: Board denied motion to dismiss pre-institution where the parties did not provide a settlement agreement. Prior to an institution decision, the parties filed a joint motion to dismiss the petition, noting that the parties had settled their dispute and dismissed the parallel district court proceeding. The parties argued that they need not file a settlement agreement with the joint motion because the IPR had not yet been instituted, arguing that 37 CFR § 42.74 requires that settlement agreements be filed before termination of a “trial,” but no trial existed without institution. The Board disagreed, noting that the rules require that the parties file the settlement agreement in connection with, or in contemplation of, the termination of a proceeding, and the rules define a “proceeding” as “a trial or preliminary proceeding.” *Texas Instruments Inc. v. Sonrai Memory Ltd.*, IPR2022-00801, Paper 8 (Sept. 22, 2022) (Hamann, joined by Anderson and White).

PTAB: Alternative dates of public accessibility permissible for asserted reference. Petitioner relied on the Dahlman reference in its grounds and asserted that the reference was publicly accessible online in August 2008. Alternatively, Petitioner argued that the reference was available in a library by November 2008. Both dates predated the priority date of the challenged patent. The Board found that the online publication in August 2008 was sufficient because the reference was published by an established publisher, and there is a presumption of public accessibility as of the publication date by an established publisher. Alternatively, the Board indicated that even if the reference was not publicly accessible by August 2008, it was publicly accessible by November 2008 because it was available in a library approximately ten days before the priority date of the patent. The Board found that the reference qualified as prior art based on its alternative November 2008 date of public accessibility because it predated the priority date of the challenged patent. TCT

Mobile Int'l Ltd. et al. v. Sisvel S.P.A., IPR2021-00678, Paper 47 (Sept. 22, 2022) (Quinn, joined by Lee and Moore).

PTAB: Petitioner's motion to terminate denied where termination would not save the parties additional time or expense. Petitioner filed an IPR petition, and Patent Owner opted not to file a preliminary response. Four days before an institution decision was due, Petitioner submitted an email request seeking authorization to file a motion to terminate the proceeding. Petitioner stated that “according to information and belief, the motion will not be opposed by Patent Owner.” However, the Board indicated that Petitioner had not provided “the Board the underlying facts that would reasonably lead to that conclusion.” The Board explained that Patent Owner’s decision not to file a preliminary response “is insufficient evidence...to infer Patent Owner’s position with respect to Petitioner’s request to file a motion to withdraw the petition.” The Board denied Petitioner’s request based on a lack of evidence that the parties agreed on termination and because Petitioner’s request came “too late in the proceeding.” *Trutek Corp. v. The Regents of the Univ. of Michigan*, IPR2022-00674, Paper 9 (Sept. 27, 2022) (Jenks, joined by Hulse).

PTAB: No discretionary denial based on separate litigation involving different defendant. Arguing for discretionary denial, Patent Owner urged the Board to ignore the parallel litigation between Patent Owner and Petitioner and instead base its analysis on a separate W.D. Texas litigation in which Patent Owner asserted the patent at issue against another defendant. Patent Owner argued that the other defendant cited the same prior art combination as allegedly teaching the contested limitation of the patent at issue, but the Board determined that cited evidence did not support the argument. Patent Owner provided no declaration testimony stating what the cited evidence represented, and the cited evidence did not state that it was related to the separate litigation. The Board further determined that there was no persuasive evidence to establish whether the same prior art combination in the IPR proceeding would be asserted in the separate litigation against the contested limitation. Thus, the Board determined Patent Owner’s argument to be based on speculation, not evidence, and the Board declined to exercise discretionary denial. *Apple Inc. v. CPC Patent Techs. Pty, Ltd.*, IPR2022-00602, Paper 11 (Sept. 28, 2022) (Grossman, joined by Daniels and Hagy).

PTAB: Sotera-style stipulation not required to avoid discretionary denial under Director's Interim Guidance. Patent Owner argued that the Board should discretionarily deny institution because Petitioner did not enter a Sotera-style stipulation in the related district court litigation. Patent Owner noted that the Director’s June 2022 Interim Guidance on discretionary denials allows petitioners to avoid discretionary denial based on parallel district court litigation by providing a Sotera-style stipulation. Rather than make a Sotera-style stipulation, Petitioner made a Sand Revolution-style stipulation to not rely on the same grounds raised in the IPR petition. The Board clarified that the Director’s Interim Guidance does not “make a Sotera-style stipulation a prerequisite for institution.” The Board declined to exercise its discretion to deny institution based on its application of the Fintiv factors. The Board found that Petitioner’s narrow stipulation still “mitigate[d] to some degree the concerns of duplicative efforts,” such that Fintiv factor 4 weighed marginally against discretionary denial. *Zhuhai Cosmx Battery Co., Ltd. v. Maxell, Ltd.*, IPR2022-00984, Paper 8 (Sept. 29, 2022) (Roesel, joined by Kalan and Derrick).

PTAB: Board considers median time-to-trial for district court rather than median time-to-trial for individual judge in that district. Patent Owner argued for discretionary denial because parallel litigation in the Western District of Texas was scheduled for trial before the Board would issue a final written decision. After issuance of the Director’s June 2022 Interim Guidance on discretionary denials, Petitioner argued in a preliminary reply that the Board should not deny institution based on the median time-to-trial statistics for WDTX (27.2 months). Patent Owner argued in a preliminary sur-reply that the Board should instead consider the median time-to-trial statistics for Judge Albright (22.9 months), the presiding judge in the parallel litigation. The Board disagreed with Patent Owner, finding that under the Interim Guidance, the Board considers the median time-to-trial “for the district in which the parallel litigation resides.” Applying the median time-to-trial for WDTX, rather than Judge Albright’s median time-to-trial, the Board found that “the expected trial date” would be after the Board’s final written decision and declined to discretionarily deny the petition. *Apple Inc. v. Arigna Tech. Ltd.*, IPR2022-00651, Paper 12 (Oct. 6, 2022) (Dang, joined by Baer and Fenick).

PTAB: Request for rehearing denied where good cause was not shown to reconsider prior Fintiv-based denial. In November 2020, the Board discretionarily denied institution under Fintiv in view of a parallel ITC proceeding. In July 2022, Petitioner filed a request for rehearing of the discretionary denial, arguing that the Fintiv factors do not apply and have never applied to parallel ITC investigations, based on the Director’s June 2022 Interim Guidance on discretionary denials. Petitioner argued that the Board would have instituted review but for its misapplication of Fintiv. Although a request for rehearing must be filed within 30 days of entry of a final decision, Petitioner argued that the Board can waive the time limit and excuse a late action based on good cause and interests of justice. The Board denied rehearing, finding that the Interim Guidance applied only to pending proceedings before the Office. In addition, the Board declined to excuse the late filing of the request, stating that Petitioner had not established good cause or that it was in the interest of justice to re-open the proceeding that had been closed since 2020. *Philip Morris Prods., S.A. v. RAI Strategic Holdings, Inc.*, IPR2020-00919, Paper 15 (Oct. 13, 2022) (Kokoski, joined by Roesel and Range).

PTAB: Compelling evidence of unpatentability supports institution on remand from Director Review, despite jury verdict rejecting validity challenge. After the Board denied Petitioner’s joinder petition under *General Plastic*, the Director vacated, holding that *General Plastic*’s factors 1-3 have limited applicability when there has been a prior discretionary denial. The Director instructed the Board to reconsider on remand the remaining arguments, including those under Fintiv. On remand, the Board instituted IPR because the Petition presented “compelling evidence of unpatentability.” Under the Director’s June 2022 Interim Guidance on discretionary denials, the Board should not discretionarily deny a petition upon finding that the petitioner’s challenge meets the compelling evidence standard. The Board was not persuaded to discretionarily deny institution based on a jury previously rejecting a validity challenge by some of the petitioners. The Board noted that at least one of the prior art references at issue was not before the jury and instituting IPR would help “strengthen[] the patent system by eliminating patents that are not robust and reliable.” *Code 200, UAB v. Bright Data Ltd.*, IPR2022-00861, Paper 19 (Oct. 19, 2022) (McShane, joined by Giannetti and Cass).

PTAB: Institution granted where General Plastic does not apply to prior reexamination. The instant patent was previously challenged in three separate inter partes reexaminations, which were consolidated into a single reexamination. Patent Owner licensed the patent to Petitioner until Patent Owner terminated for “material breach,” and Patent Owner thereafter accused Petitioner of infringement. After Petitioner filed an IPR petition, Patent Owner asked the Board to extend the General Plastic framework to discretionarily deny the Petition due to the prior inter partes reexamination. The Board declined to extend General Plastic to deny institution based on a prior reexamination. Further, the Board noted that the challenges raised by Petitioner differed from the challenges raised in the reexamination. *Samsung Elecs. Co., Ltd. v. Netlist, Inc.*, IPR2022-00615, Paper 20 (Oct. 19, 2022) (Jurgovan, joined by Galligan and Khan).

PTAB: Board denied institution involving design patent where 42 obviousness grounds had inadequate analysis and only one marginal anticipation ground remained. Petitioner raised 42 obviousness challenges and a single anticipation challenge in its IPR petition. The Board found all obviousness grounds inadequate, determining that Petitioner’s obviousness analysis was lacking. In particular, Petitioner failed to address the differences between the prior art and the claimed design or how any primary reference would have been modified. With respect to the remaining anticipation ground, the Board noted that institution would put Patent Owner in the untenable position of having to defend against all 43 challenges, even though only the anticipation ground met the requirements for institution. Additionally, Patent Owner presented strong evidence that raised concerns regarding the alleged priority date of the challenged patent, tipping the scales against institution. The Board was not persuaded that Patent Owner should have to take on the task of establishing priority to defend against Petitioner’s challenges. The Board exercised its discretion not to institute. *IdeaVillage Prods. Corp. v. Koninklijke Philips N.V.*, IPR2022-00904, Paper 8 (Oct. 25, 2022) (Obermann, joined by Fredman and Barrett).

PTAB: Final written decision reversed on rehearing based on Director Vidal’s AAPA Memo. Applying the USPTO’s August 2020 Guidance Memorandum on applicant admitted prior art (AAPA), the Board issued a final written decision finding that Petitioner had not shown unpatentability because it had improperly relied on applicant admitted prior art (“AAPA”) as the “basis” for its IPR. Petitioner’s grounds included AAPA in combination with other prior art. Petitioner filed a request for rehearing based on Director Vidal’s June 2022 Updated Guidance on AAPA. The Board granted rehearing and reversed the final written decision in light of the Updated Guidance, holding that “[b]ecause Petitioner’s grounds involve a combination of AAPA and prior art patent(s), AAPA does not form the basis of the grounds.” The Updated Guidance does not require assessing whether the AAPA was “the foundation or starting point” of the obviousness analysis. The Board found that Patent Owner had forfeited its argument that the AAPA was not generally known by failing to raise it before the hearing. After analyzing the obviousness combinations on the merits, the Board found all challenged claims unpatentable. *SolarEdge Techs. Ltd. v. SMA Solar Tech. AG*, IPR2020-00021, Paper 31 (Oct. 25, 2022) (Howard, joined by Chang and Droesch).

PTAB: Institution granted despite Petitioner not providing a ranking of parallel petitions. Petitioner filed parallel petitions challenging different claims of the same patent. Petitioner did not submit a ranking of the petitions, explaining that it was not feasible for Petitioner to do so “because there is no claim overlap between the petitions and only a single obviousness ground per claim

was proffered.” Patent Owner argued that the petition should be denied due to Petitioner’s failure to provide a ranking as required by the Trial Practice Guide. The Board disagreed, explaining that “[a]lthough the TPG advises that a ‘petitioner should, in its petitions or in a separate paper filed with the petitions, identify: (1) a ranking of the petitions,’ ... we determine that Petitioner’s failure to rank its petitions does not outweigh” the fact that (1) Patent Owner had asserted a large number of claims in the district court, and (2) the same claims are not challenged between the two petitions. *Micron Tech., Inc. v. Netlist, Inc.*, IPR2022-00744, Paper 15 (Nov. 1, 2022) (Khan, joined by Jurgovan and Galligan).

PTAB: Fintiv denial of petition. Patent Owner argued for discretionary denial based on the state of parallel litigation in the Eastern District of Texas involving Patent Owner and Petitioners. The Board exercised its discretion to deny institution based on its application of the Fintiv factors and Director’s June 2022 Interim Guidance on discretionary denials. The Board found that Fintiv factor 2 weighed heavily in favor of denial because “trial likely will be set” approximately 11 months before the Board would issue a final written decision. The Board found that Fintiv factor 3 also weighed in favor of denial because investment in the district court proceeding had been “extensive,” including completion of all substantive motions and discovery. With respect to Fintiv factor 4, Petitioner provided a Sand Revolution-type stipulation to avoid overlap. The Board found that Petitioner’s “stipulation is limited and unlikely to significantly prevent” duplication between the proceedings. In addition, the Board found that Petitioner did not “present[] a compelling, meritorious challenge.” *Nokia of Am. Corp. et al. v. Godo Kaisha IP Bridge 1*, IPR2022-00755, Paper 9 (Nov. 2, 2022) (Hamann, joined by McKone and Hagy).

PTAB: On remand, claims held unpatentable based on applicant admitted prior art. Two of Petitioner’s grounds challenged claims as obvious over applicant admitted prior art (AAPA) in combination with a prior art patent. In a first final written decision, the Board held the claims unpatentable under the AAPA-based grounds. On appeal, the Federal Circuit held that AAPA does not constitute “prior art consisting of patents or printed publications” under 35 U.S.C. § 311(b). *Qualcomm Inc. v. Apple Inc.*, 24 F.4th 1367 (Fed. Cir. 2022). On remand, the Board applied Director Vidal’s June 2022 Updated Guidance on APAA and found that Petitioner’s grounds did not rely on AAPA as the “basis” for its challenge because AAPA was used in combination with a prior art patent. The Board reasoned that the prior art patent “form[s] the basis of the challenge and AAPA is simply being used to provide missing limitations.” The Board disagreed with Patent Owner’s argument that AAPA is the “foundation” of the challenge because AAPA was cited as the primary reference in combination with the prior art patent, because stating that a ground includes both AAPA and a prior art patent “is not determinative as to what the ground is based on.” *Apple Inc. v. Qualcomm Inc.*, IPR2018-01315, Paper 40 (Nov. 10, 2022) (Howard, joined by Jefferson and Galligan).

PTAB: Patent Owner’s motion to dismiss denied where the Board had substantially completed its final written decision. After oral hearing but 13 days prior to the final written decision deadline, Patent Owner filed a motion to dismiss the proceeding as moot based on a ruling in a parallel district court proceeding that the challenged patent was patent-ineligible under 35 U.S.C. § 101. The Board denied the motion. Under 35 U.S.C. § 317(a), the Board need not terminate proceedings if it “has decided the merits of the proceeding before the request for termination is filed.” The Board declined to terminate the IPR in view of the substantial investment by both parties, the

Board having decided the merits of Petitioner’s challenge before Patent Owner’s request, and the public’s interest in canceling invalid patents. Further, the Board observed that an adverse decision would preclude Patent Owner, in related patent applications, from obtaining a “claim that is not patentably distinct from a finally refused or canceled claim.” *Tile, Inc. v. Linquet Techs., Inc.*, IPR2021-00927, Paper 52 (Nov. 16, 2022) (Belisle, joined by White and Amundson).

PTAB: IPR petition denied as premature and instituted parallel PGR. Petitioner filed both IPR and PGR petitions against the same patent on the same day, asserting the same three grounds of obviousness in the IPR and PGR petitions. In the PGR petition, Petitioner argued that the patent is PGR-eligible because at least one claim of the patent does not have support in a pre-AIA priority application. The Board agreed with Petitioner and found the patent PGR-eligible based on a lack of support for a dependent claim in the priority application. Further, Patent Owner stipulated that the patent is PGR-eligible. The Board granted institution of the PGR petition and denied the IPR petition as premature under 35 U.S.C. § 311(c), which provides that an IPR may not be filed until 9 months after an AIA patent is granted, or the date of termination of a PGR proceeding if one is instituted. *Samsung Elecs. Co., Ltd. et al. v. Memoryweb, LLC*, IPR2022-00885, Paper 11 (Nov. 17, 2022) (Trock, joined by Browne and Beamer); *Samsung Elecs. Co., Ltd. et al. v. Memoryweb, LLC*, PGR2022-00034, Paper 11 (Nov. 17, 2022) (Trock, joined by Browne and Beamer).

PTAB: Discovery denied for declarant’s unfiled draft declaration. Patent Owner sought discovery of an unfiled draft reply declaration that Petitioner’s declarant referenced in his deposition. Patent Owner argued that the draft declaration was “routine discovery” and that the declarant waived any privilege for the draft declaration by using it to prepare for the deposition. Petitioner countered that, during a video deposition, the declarant inadvertently relied on a single sentence from paragraph five of the draft declaration relating to a claim construction position and that it did not waive privilege. Petitioner did not seek to “claw back” that paragraph. The Board determined that Fed. R. Civ. P. 26 allows for discovery of “facts and data” but not mental impressions of attorneys or expert opinion evidence based on facts and data. The Board found that Patent Owner failed to show how a claim construction theory represents “facts and data,” which would be discoverable, rather than an opinion based on underlying facts and data, which is not discoverable. The Board reasoned that a draft declaration exposes the lawyer’s mental processes and is protected work product until it is filed. Accordingly, the Board found that the draft declaration is “protected as not filed because it presumptively or potentially exposes Petitioner’s lawyer’s mental processes.” *Twitter, Inc. v. Palo Alto Research Center Inc.*, IPR2021-01398, Paper 33 (Nov. 18, 2022) (Easthom, joined by McShane and Ogden).

PTAB: Petition discretionarily denied as inefficient use of Board’s time and resources where only one ground for one claim was likely to prevail out of five challenges of 14 claims. The Board exercised its discretion to deny institution based on its determination that Petitioner had not demonstrated a reasonable likelihood that it would prevail against 13 of 14 challenged claims. The Petition presented five challenges to fourteen claims. The Board determined that Petitioner had “at best” satisfied the “reasonable likelihood” standard for institution for only one of the five challenges and only one of the 14 challenged claims.” Relying on two earlier PTAB decisions designated as informative—*Chevron Oronite Co. v. Infineum USA L.P.*, IPR2018-00923, Paper 9 (Nov. 7, 2018) and *Deeper, UAB v. Vexilar, Inc.*, IPR2018-01310, Paper 7 (Jan. 24, 2019), the Board denied institution because resolving the patentability of a single claim would not be an

efficient use of the Board's time and resources. *Google LLC v. Jawbone Innovations, LLC*, IPR2022-00888, Paper 12 (Nov. 28, 2022) (Amundson, joined by Braden and Dirba).

PTAB: Second petition instituted, despite substantial overlap between the challenged claims where Patent Owner argued an earlier priority date after first petition filed. Petitioner filed a first IPR petition in response to Patent Owner's complaint in district court. More than two months after the first IPR petition was filed, Patent Owner filed a motion for preliminary injunction in the litigation, alleging an earlier priority date for certain claims of the challenged patent. Petitioner subsequently filed a second IPR petition that presented grounds with prior art that predated the earlier priority date. While noting substantial overlap in the challenged claims, the Board considered factors outside of General Plastic, noting that Petitioner did not have reason to presume a priority date earlier than presented on the face of the challenged patent. The Board further observed that if Patent Owner's earlier priority date was valid, four of the five grounds in the first petition would be nullified. As such, the Board declined to exercise its discretion to deny institution of the second petition. *Envirocontainer AB v. Doubleday Acquisitions, LLC*, IPR2022-00864, Paper 10 (Nov. 29, 2022) (Jeschke, joined by Barrett and Marschall).

PTAB: No discretionary denial based on some overlap in alleged "redundant" grounds where grounds were neither excessive nor unexplained. In its preliminary response, Patent Owner contended that discretionary denial was warranted on two grounds: first, that Petitioner's grounds were redundant without an explained necessity; second, that Petitioner's grounds lacked the necessary "particularity" required under § 312(a)(3). The Board determined that, while some overlap existed, it was neither excessive nor unexplained. Notably, the Board stated that Petitioner had adequately explained which references are relied upon for each claim limitation in each of the grounds. The Board further determined that a person of ordinary skill in the art would have combined the prior art teachings with a reasonable expectation of success. *Google LLC v. Nobots LLC*, IPR2022-00940, Paper 13 (Dec. 1, 2022) (Cocks, joined by Pettigrew and Parvis).